

CHAPTER 25.

An Act to consolidate with Amendments the Laws relating to Licensing in Scotland.

[14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

CONSTITUTION OF LICENSING AND APPEAL COURTS.

1. For the purpose of granting certificates under this Act, there shall annually be held throughout Scotland, in lieu of the general half-yearly meetings held under the existing Acts, two general half-yearly meetings of the licensing courts to be constituted as hereinafter provided. Meetings of licensing courts for granting certificates.

2. For each burgh being a county of a city, and for each royal, parliamentary or police burgh containing a population of or exceeding seven thousand, and for each burgh containing a population under seven thousand but of or exceeding four thousand, the magistrates of which have power to grant certificates under the existing Acts, there shall be a separate licensing court, consisting of the magistrates of such burgh for the time being. Burgh licensing courts.

3.—(1) The county council of every county shall, at any general or special meeting to be held not later than the third Tuesday of December one thousand nine hundred and three, and thereafter from time to time, determine in their discretion whether the county shall be divided into districts for the purposes of this Act (hereinafter called licensing districts). It shall be lawful for the county council, where the county is divided into districts in terms of the Local Government (Scotland) Act, 1889 (hereinafter called local government districts), to determine that any one or any combination of two or more of such districts shall be a separate licensing district, but County licensing courts.

(a) No licensing districts other than local government districts or combinations thereof shall be constituted; and

(b) No county not divided into local government districts shall be divided into licensing districts

without the consent of the Secretary for Scotland in either case both to the division and to the districts proposed. Every determination under this section shall be forthwith communicated to the Secretary for Scotland and published by advertisement in two successive weeks in a newspaper or newspapers circulating in the districts. 52 & 53 Vict. c. 50.

(2) For the purposes of this part of this Act every Burgh, except those specified in the immediately preceding section, shall be deemed to form part of the county and of the local government or licensing district (if any) within which it is situate.

(3) For each county or, where a county is divided into licensing districts, for each licensing district there shall be a separate licensing court whereof the number of members shall in each case be in accordance with the scale contained in the First Schedule annexed hereto. One half of the members of such court shall in every case be elected by the justices of the peace for the county from their own number and one half by the county council from their own number.

(4) Provided always that where, for the purposes of this part of this Act, any burgh, the magistrates of which have power to grant certificates under the existing Acts, forms part of a county or district, the licensing court for such county or district shall be modified by the addition thereto of such number of members for every such burgh as the Secretary for Scotland shall determine by order under his hand, so that one member at least shall be added for every such burgh, and that the number of members for each burgh shall, as nearly as may be, bear the same proportion to the number of the court without such addition, as the population of the burgh bears to the population of the county or district excluding every such burgh: Provided further that such added members shall, in every case, be magistrates of the respective burghs, and the total number of members for any burgh shall not exceed the number of magistrates thereof.

Burgh and
county courts
of appeal.

4.—(1) For the purpose of hearing appeals and applications for confirmation of new certificates under this Act, there shall be a court (hereinafter called “the court of appeal”), one half of the members of which shall in every case be elected by the justices of the peace from their own number and one half shall be burgh magistrates or county councillors respectively, as hereinafter provided.

(2) Except as hereinafter provided the court of appeal from a burgh licensing court shall be—

(a) for each burgh being a county of a city, a separate court consisting of the members of the licensing court and of an equal number of justices of the peace for the county of a city; and

(b) for each royal, parliamentary or police burgh (not being a county of a city) containing a population of or exceeding twenty thousand, a separate court consisting of the members of the licensing court and of an equal number of justices of the peace for the county within which the burgh is situate; and

(c) in each county, for all the royal, parliamentary and police burghs situate therein containing a population of or exceeding seven thousand and under twenty thousand, one and the same court, consisting of burgh magistrates and justices of the peace for the county as specified in the Second Schedule annexed hereto.

(3)*The court of appeal (a) from a county licensing court, or, if the county is divided into licensing districts, from the several district licensing courts, and (b) from any burgh licensing court for a burgh situate within the county which is not specified in the immediately preceding subsection, shall for each county be one and the same court, whereof one half of the members shall be county councillors for the county elected as hereinafter provided, and one half shall be justices of the peace for the county; and the number of members shall be such that the court shall contain three more county councillors and three more justices of the peace than the county licensing court or the licensing court for the most populous licensing district within the county, as the case may be, in accordance with the Third Schedule annexed hereto.

5.—(1) The term of office of members of a licensing court or court of appeal being justices of the peace or county councillors, except in the case of those first elected, shall be three years. The members being justices of the peace shall be elected at the statutory meeting of quarter sessions in March one thousand nine hundred and four, and shall hold office till a meeting of justices of the peace to be held on the third Tuesday of December one thousand nine hundred and four, when they shall retire and their successors shall be elected, and thereafter such retirement and election shall take place every third year at a meeting of justices of the peace to be held on the third Tuesday of December. Every such meeting on the third Tuesday of December shall be held at the same place as the general meeting of the county council on that day. The members being county councillors shall be elected at the general meeting of the county council in December one thousand nine hundred and three or at any special meeting to be held not later than the first Tuesday of March one thousand nine hundred and four, and shall hold office till the general meeting of the county council in December one thousand nine hundred and four, when they shall retire and their successors shall be elected, and thereafter such retirement and election shall take place every third year at the general meeting of the county council in December: Provided, that, in section eight of the Local Government (Scotland) Act, 52 & 53 Vict. 1889, the expression "purposes hereinafter mentioned" shall be deemed to include the purposes of this part of this Act, subject to the condition that no county councillor representing a burgh having a separate licensing court or court of appeal, as the case may be, shall be entitled to act or vote in an election of members of a county licensing court or court of appeal respectively; and provided further that no justice of the peace, who is not entered on the valuation roll for a county or a burgh situate therein as a proprietor, tenant or occupier of lands or heritages, shall be entitled to act or vote in the election by the justices for the county of representatives from their own number to the county licensing court or court of appeal, or to a court of appeal from a burgh licensing court, or be eligible for election as a member of any of such courts.

Election and
term of office
of members of
courts.

c. 50.

(2) The members of a county or district licensing court, being magistrates of a burgh, and the members of a court of appeal from a burgh licensing court, being magistrates of a burgh containing a population under twenty thousand, shall, where necessary, be elected by the magistrates of the burgh in each case at a meeting to be summoned by the town clerk and to be held on any day within fourteen days after the annual election of town councillors in the year one thousand nine hundred and three, and in subsequent years as vacancies occur. The provost, or in his absence the senior bailie present, shall be chairman of such meeting. Each magistrate being a member of a county or district licensing court or of a court of appeal from a burgh licensing court shall hold office so long as he remains a magistrate of the burgh.

(3) Retiring members of a licensing court or a court of appeal shall be eligible for re-election, if otherwise qualified. A burgh magistrate or county councillor shall not be disqualified for election or membership in that capacity because he is or becomes a justice of the peace, and a justice of the peace shall not be disqualified for election or membership in that capacity because he is or becomes a burgh magistrate or a county councillor.

(4) If in any case, not otherwise provided for, a licensing court or court of appeal is not elected at the time at which it ought to be elected, or an insufficient number of members is elected for such court, the Secretary for Scotland shall by order provide for the holding of a fresh election or fresh elections for supplying any such default or insufficiency in election, at such times and in such manner as he may think expedient. No election held in pursuance of this Act shall be deemed to be vitiated in consequence of any technical defect in the proceedings which has not been prejudicial to the interests of any party concerned in such election.

(5) Where in a burgh any magistrate is disqualified from acting as a member of a licensing court or court of appeal, and no other magistrate is available, it shall be lawful for the town council to elect a councillor of the burgh to so act in room of such magistrate while he remains a magistrate of the burgh and his disqualification continues.

(6) Any casual vacancy arising in a licensing court or court of appeal from death, resignation, disqualification or other cause, may be filled by the election of a duly qualified person, at the first meeting of quarter sessions, statutory or adjourned, or of the county council, or at a special meeting of the burgh magistrates, following upon such vacancy, as the case may be, and members so elected shall in each case respectively hold office until the date of the next ordinary meeting for elections by this Act provided.

(7) A licensing court and a court of appeal shall annually elect one of their own number to act as chairman of such court, and, until a chairman is elected, and in case of his absence from any meeting, the court shall elect one of their own number present at the meeting chairman of that meeting.

(8) When on the election of a chairman an equal number of votes is given for two or more persons, the meeting shall determine

by lot which of these persons shall be the chairman, and in every other case of equality the chairman of the court or meeting shall have a second or casting vote.

(9) One half of the members of a licensing court or a court of appeal (and in no case less than two members) must be present at a meeting of such court to constitute a quorum.

(10) A licensing court or court of appeal may act notwithstanding any vacancy or vacancies caused by insufficient election or otherwise, provided that a quorum is constituted.

(11) Notwithstanding anything hereinbefore provided, the chairman of a licensing court shall have no second or casting vote on an application for a new certificate, and no such application shall be granted by such court except by a majority of the members thereof present and voting.

6. A burgh licensing court shall meet upon the second Tuesday of April and the third Tuesday in October in each year, and a county or district licensing court shall meet on the third Tuesday of April and the last Tuesday of October in each year; and it shall be lawful for such courts respectively to adjourn such meetings from time to time, as they shall think fit, during the period of one month next after the day of their first meeting, but no longer.

Dates of half-yearly meetings.

7.—(1) On and after the third Tuesday or the second Tuesday of April, as the case may be, one thousand nine hundred and four, and subject to the provisions of this Act, the general half-yearly meetings of the licensing courts constituted by this Act shall respectively be deemed to come in place of the general or district half-yearly meetings of justices or magistrates held under the existing Acts, and such courts respectively for the purpose of granting certificates shall, within the areas defined by this Act, be deemed to come in place of and shall have and may exercise all the powers and duties of the justices or the magistrates as the case may be; and every reference in any Act of Parliament, deed or instrument to the justices or the magistrates as the authority for the purpose aforesaid, or to the justices or the magistrates or one or more of them as members of such authority, or to the general or district half-yearly meetings or any meeting of justices or magistrates as such authority, or to the licensing authority, shall be read and construed as referring respectively to the licensing court or members thereof, and to the half-yearly meetings or any meeting of such court.

Transfer of powers and duties.

(2) From and after the respective dates aforesaid, and subject to the provisions of this Act, the courts of appeal constituted by this Act shall respectively, for the purposes specified and within the areas defined by this Act, be deemed to come in place of and shall have and may exercise all the powers and duties of quarter sessions, county licensing committees or joint committees for a burgh, as the case may be, and every reference in any Act of Parliament, deed or instrument to quarter sessions, county licensing committees or joint committees of burghs as the authority for the

said purposes, or to justices or magistrates, or one or more of them as members of such authority, shall be read and construed as referring to the court of appeal or members thereof.

Clerks to
courts and
time and place
of meetings.

8.—(1) The town clerk shall by himself or his depute be the clerk to the licensing court for a burgh having a separate licensing court, and the clerk of the peace shall by himself or his deputy be the clerk to the licensing court for a county, or where a county is divided into licensing districts, for each licensing district, and shall also by himself or his deputy be the clerk to every court of appeal constituted by this Act. Subject to the provisions of this Act, the clerk to a licensing court or an appeal court constituted by this Act shall, within the areas defined by this Act, have and discharge the rights and duties under the existing Acts belonging to or devolving on the clerk to the justices or magistrates as the authority for the purpose of granting certificates, or the clerk of the peace acting as clerk to quarter sessions, county licensing committees or joint committees for a burgh, as the case may be, and all things authorised or required under the existing Acts to be done by or to the said clerks respectively may be done by or to the clerk to a licensing court or an appeal court constituted by this Act.

(2) A court of appeal from a licensing court shall have the power to make regulations from time to time with respect to the meetings of such court of appeal and the transaction of business thereat, both for the purposes of hearing applications for confirmation of new certificates and generally: Provided that, where any appeals or applications for confirmation have been lodged within the statutory period, such court shall meet for the purpose of hearing such appeals or applications at a date not later than one month after the general half-yearly meeting of the licensing court or any adjournment of the same; and provided further that, for the last-mentioned purpose and for the purpose of making regulations as aforesaid, every court of appeal shall meet at a date to be prescribed by the sheriff (not being a sheriff-substitute), not later than one month after the first general half-yearly meeting of the licensing court or any adjournment of the same in the year one thousand nine hundred and four.

(3) The meetings of a county licensing court and the meetings of a district licensing court shall be held at such place as the county council shall from time to time determine and publish by advertisement, and all existing liabilities to provide accommodation for meetings, and otherwise defray expenses in respect of proceedings of the justices acting as aforesaid, shall subsist and be applicable in respect of the meetings and proceedings of a county or district licensing court, and of the licensing court for a police burgh having a separate licensing court.

(4) The meetings of a licensing court for a burgh having a separate licensing court and of a court of appeal for a burgh being a county of a city, or a royal, parliamentary or police burgh containing a population of or exceeding twenty thousand, shall

be held in such burgh, and it shall be the duty of the town council of such royal or parliamentary burgh to provide accommodation for such meetings, and otherwise defray any necessary expenses in respect of proceedings of the licensing court or court of appeal, and, save as otherwise already chargeable against any burgh rate, to charge the same against the burgh general or police assessment.

(5) The meetings of every court of appeal, other than those specified in the immediately preceding subsection, shall be held at such place or places as the county council shall from time to time determine and publish by advertisement, and all existing liabilities to provide accommodation for meetings, and otherwise defray expenses in respect of proceedings of quarter sessions for hearing appeals under section fourteen of the Licensing (Scotland) Act, 1828, shall subsist and be applicable in respect of the meetings and proceedings of such court of appeal and of the court of appeal for a police burgh containing a population of or exceeding twenty thousand. 9 Geo. 4. c. 58.

(6) Every royal or parliamentary burgh, which, for the purposes of this part of this Act, forms part of any county or district, shall contribute to the county fund in aid of the expenditure thereout in respect of the meetings and proceedings of a county or district licensing court and the court of appeal therefrom, and every royal or parliamentary burgh, containing a population under seven thousand, but of or exceeding four thousand, or included or to be hereafter included in Part I. of the Second Schedule annexed hereto, shall contribute to the county fund in aid of expenditure incurred thereout in respect of the meetings and proceedings of the court of appeal from the burgh licensing court. For the purpose of every such contribution subsection four of section sixty and section sixty-six of the Local Government (Scotland) Act, 1889, shall apply to such expenditure as if it were referred to therein. Save as aforesaid no royal or parliamentary burgh shall be liable to contribute to the county fund in respect of the meetings or proceedings of a licensing court or court of appeal. 52 & 53 Vict.
c. 50.

9.—(1) No person who is a brewer, maltster, distiller, or dealer in or retailer of exciseable liquors, or who shall be in partnership with any person as a brewer, maltster, distiller, or dealer in or retailer of exciseable liquors, shall act as a member of a licensing court or court of appeal respectively in the execution of this Act; nor shall any person, being a member of a licensing court or court of appeal, act in the granting of any certificate when he shall be the proprietor or tenant of the house or premises for which such certificate shall be applied; and everything done by such person respectively in any case in which he is so disqualified to act shall be null and void; and every person who shall knowingly or wilfully offend in any of the premises aforesaid shall forfeit and pay the sum of fifty pounds, to be recovered before the sheriff within six calendar months next after the offence has been committed: Provided that no grant of a new certificate confirmed under the Persons interested not to act as members of court

provisions of this Act shall be liable to objection on the ground that the members of the licensing court or court of appeal, which granted or confirmed the same, or any of them were not qualified to make such grant or confirmation, and provided further that a member of a licensing court or a court of appeal shall not be disqualified to act for any purpose under this Act by reason only of his being interested in a railway company which is a retailer of exciseable liquor.

(2) If in any burgh having a separate licensing court there shall not be a sufficient number of members of such court present who are qualified to grant certificates according to the directions of this Act, at any time when such certificates are hereby appointed to be granted, in such case it shall be lawful for the licensing court for the county or district in which such burgh is situate to grant certificates for such burgh, at the same time and in the same manner as they are hereby empowered to grant certificates for the county or district: Provided always that any members of the licensing court for such burgh so qualified may and are hereby authorised and empowered in such case to act along with the licensing court for such county or district in granting such certificates.

Supplemental
and local pro-
visions.

10.—(1) For the purposes of this part of this Act—

- (a) the lower ward, middle ward and upper ward of the county of Lanark, so long as they remain local government districts, shall each be deemed to be a county, and the county council and justices of the peace for the county of Lanark shall be deemed to be the county council and justices of the peace for and in respect of the county of each ward, with power to the county council to divide such counties into licensing districts as hereinbefore provided with the consent of the Secretary for Scotland, and the clerk of the peace for each ward shall be deemed to be the clerk of the peace for and in respect of the county of such ward; and
- (b) the burgh of Coatbridge shall be deemed to be a royal burgh; and
- (c) the royal burgh of Banff and the police burgh of Macduff shall be deemed to form one burgh of Banff and Macduff, and the magistrates of the said burghs shall be deemed to be the magistrates of the burgh so formed, and the meetings of the licensing court for such burgh shall be held in the royal burgh of Banff, and the town clerk of the royal burgh of Banff shall be clerk to the licensing court; and
- (d) the royal burghs of Kilrenny, Pittenweem, Anstruther Easter and Anstruther Wester shall be deemed to form one royal burgh, and the magistrates of the said burghs shall be deemed to be the magistrates of the burgh so formed, and the meetings of the licensing court for such burgh shall, except as otherwise appointed by the court, be held in the royal burgh of Anstruther Easter, and the town clerk

- of the royal burgh of Anstruther Easter shall be clerk to the licensing court; and
- (e) the boundaries of burghs shall be held to be the boundaries thereof as ascertained, fixed or determined for police purposes at the passing of this Act, or at the date of the census for the time being last taken, as the case may be.

(2) In this part of this Act the expression "population" means population according to the census for the time being last taken: Provided that the population, as stated in the Second Schedule annexed hereto, of each burgh named therein shall for the purposes of this part of this Act be deemed to be the population of such burgh according to the census of one thousand nine hundred and one, and provided further that, as soon as may be after each census, the Secretary for Scotland shall issue an order or orders under his hand declaring the population of each county, burgh and district, according to such census, and may prescribe therein the date or dates at which alterations in the licensing courts and courts of appeal consequential on any increase or decrease of population shall take effect. Provided further that, where according to the census last taken the population of a burgh or burghs in any county has so increased or decreased as to necessitate an alteration in the Second Schedule annexed hereto, the Secretary for Scotland shall by order under his hand alter the said Schedule so that every burgh in the county containing a population of or exceeding seven thousand and under twenty thousand (and no other burgh) shall be included therein, and so as to provide for due representation on the court of appeal of every burgh so included. Every order under this section shall be laid before Parliament.

(3) Any question that may arise as to the county or district in which a burgh is situate or of which it is for the purposes of this part of this Act to be deemed to form part shall be determined by the Secretary for Scotland, whose decision shall be final.

PART II.

POWERS, DUTIES AND PROCEDURE OF LICENSING AND APPEAL COURTS.

11.—(1) At any general half-yearly meeting of a licensing court or at any adjournment thereof, within the respective periods aforesaid, it shall be lawful for the said court to grant certificates for the year or half-year next ensuing as the case may be, commencing and terminating as after mentioned, to such and so many persons as the court then assembled at such meeting shall think meet and convenient, to keep inns and hotels or public-houses, within which exciseable liquors may, under excise licences, be sold by retail, to be drunk or consumed in the premises, within the jurisdiction of such court; and such court shall deliver or cause to be delivered to every person so authorised or empowered a certificate, written or printed on paper in such form as herein-after directed: Provided always that all such meetings shall be held

Certificates to
keep inns, &c.
to be granted
at meetings.

with open doors, and that it shall not be competent to refuse the renewal of any certificate without hearing the party in support of the application for renewal in open court, if such party shall think fit to attend, and any certificate granted otherwise than at such meetings shall be void and of no effect: Provided always that nothing herein contained shall prevent such court from granting or any person from obtaining a certificate as a grocer for the sale of exciseable liquors by retail, but not to be consumed on the premises, and, notwithstanding the repeal of any enactment by this Act, the duty payable upon any excise licence granted in pursuance of such a certificate shall continue to be at the same rate as was exigible for a similar licence immediately before the passing of this Act.

(2) It shall not be lawful for a licensing court to grant to any blacksmith at his smithy, or at any house occupied by him in the immediate vicinity of the same, any certificate to sell exciseable liquors, anything in any Act of Parliament to the contrary notwithstanding.

(3) It shall not be lawful for a licensing court to grant a certificate except to an individual person of the age of not less than twenty-one years.

Dates of commencement and termination of certificate.

12. Every certificate to sell exciseable liquors, granted under the existing Acts and this Act, shall commence on the twenty-eighth day of May or the twenty-eighth day of November, according to the period of the year at which such certificate is granted, and shall continue in force until the twenty-eighth day of May following.

Confirmation of new certificates required.

13. A grant of a new certificate by any licensing court shall not be valid unless it shall be confirmed by the court of appeal from such licensing court.

Form, &c. of applications for certificates.

14. If any person shall be desirous of keeping an inn and hotel, public-house, shop or premises for the sale therein of exciseable liquors, whether to be consumed on the premises or not, he shall, previous to the granting to him of a certificate for that purpose or the renewal of any such certificate already granted, truly fill up an application for such certificate in the form contained in the first part of the Fourth Schedule annexed hereto, and shall truly answer the several queries therein contained; and printed forms for such application shall be supplied to the applicant by the clerk to the licensing court within whose jurisdiction such inn and hotel, public-house, shop or premises shall be situate, upon payment to him of a fee of sixpence for each copy thereof, and every such application shall be filled up in a fair and legible hand, and shall be signed by the applicant or his agent thereunto authorised, and shall be lodged by the applicant with such clerk fourteen days at least before the general meeting of the licensing court for granting and renewing certificates: Provided always that it shall not be lawful for a licensing court to entertain any application for any new certificate until a report shall have been made and subscribed by a duly qualified member of such court, stating that the premises for which

the certificate is sought are of suitable construction and accommodation for the purpose applied for, and accompanied with a certificate as to the applicant's character and qualification, signed by a duly qualified member of such court, and which said report and certificate respectively shall be in the form, or as nearly as may be in the form, contained in the second part of the Fourth Schedule annexed hereto: Provided also that the court of appeal to whom any appeal shall be made from a deliverance, granting or refusing any application for a certificate, may by themselves, or any one or more of their number, inspect the premises for which a certificate is sought, and review the said report.

15. It shall be lawful for a licensing court assembled at any general meeting to make such regulations and rules as they shall think fit, not being inconsistent with the provisions of this Act, as to the manner of making such applications, as well for ascertaining the character of the applicants as whether it be expedient to grant such certificates in the places in which they are sought to be obtained, and also as to the mode of proceeding in transferring certificates as herein-after mentioned.

Licensing court may make regulations regarding applications.

16. The names and designations of all persons who make applications for such certificates shall be entered in a book or register, to be kept by the clerk to the licensing court, wherein the names and designations of new applicants shall be entered separately, which book or register shall contain columns for the designations of such applicants, for the names of the persons who recommend them, for the house or premises and place for which such certificate is sought, for the manner in which the application is disposed of, and for noting a memorandum of convictions under this Act against such persons respectively, and the dates thereof, and the cases of new applicants shall not be considered until all the other cases shall have been disposed of; and, at the end of the meeting for each day, a deliverance shall be written in such book or register, specifying whether such applications respectively were granted or refused, or continued for further inquiry, or how otherwise disposed of; and such deliverance shall be then and there signed on behalf of the court by the chairman of the meeting, according to the form contained in the Fifth Schedule annexed hereto; and it shall not be lawful for the court at any adjourned meeting to alter anything which was done at any previous meeting in granting or refusing such certificates; and the clerk to such court shall make out a certificate in the form contained in the Sixth Schedule annexed hereto, specifying the date from which such certificate shall be current.

Names and designations of applicants and result of applications to be entered in a book.

17. The clerk to the licensing court shall, at least ten days before the general meeting of such court, make out and advertise, at least twice in one or more newspapers printed or generally circulated in the district, a complete list, in the form, or as nearly as may be in the form, set forth in the Fifth Schedule annexed hereto, of all applications for new certificates within the jurisdiction of such court, and of all applications by new tenants or occupants

Lists of applications and certificate holders to be published, &c.

of premises at the time certificated ; and also of all applications for renewal of certificates which have been transferred during the currency of the previous half year ; and such clerks shall also, within the said time, transmit by post, to the registrar of every parish within such jurisdiction, a copy of the list of such applications in so far as applicable to the parish of such registrar who is hereby required to preserve the same, and to give access thereto to any officer of Inland Revenue without payment, and to any other person applying for inspection thereof upon payment of a fee of one shilling for such inspection ; and it shall be lawful for such court, at any April half-yearly meeting, if they shall think fit, to cause a descriptive list of persons to whom certificates shall have been granted for the year next ensuing, with the premises to which such certificates apply, within their jurisdiction, to be made up and printed, in such form as they shall direct, for the use of themselves and others concerned in the execution of this Act, the expense whereof shall be paid out of the respective funds in this Act specified into which penalties and expenses shall be paid.

Certificate of character and attendance of holder not necessary for renewal of certificate.

18.—(1) Where any person shall be desirous of obtaining a renewal of any subsisting certificate, granted to him in terms of the existing Acts or this Act, which has not been transferred during the current half year, it shall not be necessary that he produce along with his application any recommendation or certificate of character and qualification : Provided always that such exemption shall not be held to interfere with the powers of the licensing court under this Act to deal with such application.

(2) Where a person holding a certificate applies for the renewal of his certificate, he need not attend in person at the meeting for granting certificates, unless he is required by the licensing court so to attend.

Certain parties may object to the granting or renewal of certificates.

19. Any person or the agent of any person owning or occupying property in the neighbourhood of the house or premises, in respect of which any certificate or renewal of any certificate shall be applied for, may object to the granting or renewal of such certificate by lodging at any time, not less than five days before the general meeting of the licensing court, with the clerk to such court a notice in writing to that effect, signed by such person or his agent, specifying the grounds of such objection, which objection shall be heard at the then ensuing general meeting ; and if such objection shall be considered of sufficient importance by the court, in such general meeting, and shall be proved to their satisfaction, the said certificate shall not be granted or renewed : Provided always that no such objection shall be entertained unless it shall be proved or admitted that the person so objecting or his agent did, at least five days before such general meeting, deliver or cause to be delivered to the person applying for such certificate a copy of the aforesaid notice, or did forward to him by post, or did leave for him a copy thereof, addressed to him at his place of abode mentioned in his application, or, in the case of an application for the renewal of any certificate, at the licensed premises for which the application

is made; and it shall be lawful for the court, in the event of their considering the allegations and objections against a renewal of a certificate contained in any such notice frivolous or vexatious or unauthorised, to find the person or agent, as the case may be, making the same liable in such expenses as they shall deem proper, and the amount of the expenses so found due shall be recoverable in the sheriffs' or justices' of the peace small debt court having jurisdiction, and a certified copy of the aforesaid finding shall be sufficient evidence and authority for decerning for the amount thereof with expenses.

20. It shall be lawful for the licensing court at any general meeting to hear and determine, without the notice required by the immediately preceding section, any objections to be made verbally or in writing by any member of such court, or by the procurator fiscal, chief constable or superintendent of police against the granting or renewing of any certificate.

Court may hear certain objections without notice.

21. It shall be lawful for any member of a licensing court or court of appeal, in any application for the granting or renewing of a certificate under the provisions of this Act, or in dealing with any objection to such applications, or in any other matter relating to the proceedings of such court arising under the provisions of this Act, to grant warrant to summon witnesses and havers on behalf of any party interested; and it shall be lawful for such court or any member thereof, before whom respectively any such application, objection or matter shall be depending, to examine all such witnesses and havers on oath, and to do and perform all things necessary for the due and proper hearing and determination of the matter. And any person summoned as a witness or as a haver to appear before such court touching any matter arising out of this Act, either on the part of the complainer or of the person complained against, or of any person interested in such matter, who shall neglect or refuse to appear at the time and place for that purpose appointed, and who shall not make such reasonable excuse for such neglect or refusal as shall be admitted and allowed by such court, may, when it shall be proved on oath that he has been duly summoned at least twenty-four hours before the meeting of the court, be apprehended and committed to prison under the warrant of the said court signed on behalf thereof by the chairman of the meeting and countersigned by the clerk of such court, till he finds security to appear and give evidence; and any person who shall so neglect or refuse to appear, or who appearing shall refuse to be examined on oath, shall thereby be guilty of an offence, and on being convicted thereof shall forfeit and pay any sum not exceeding five pounds, and if any person, who under examination on oath before such court in any matter arising under the provisions of this Act, shall prevaricate or wilfully conceal the truth, it shall be lawful to such court, without any formal complaint and in a summary manner, to adjudge the person so offending to be imprisoned for any period not exceeding sixty days, or to forfeit and pay a penalty not exceeding five pounds, and the sentence awarding such punishment shall set forth shortly the nature of the offence, and shall be signed and countersigned as aforesaid.

Power to courts to summon witnesses.

Appeal from
decision of
licensing court
to court of
appeal.

22. If any member of a licensing court, or proprietor or occupier of any house or premises in respect whereof any such certificate shall be applied for, or if any proprietor or occupier of property in the neighbourhood of such house, who has objected before the licensing court to the granting or renewal of any such certificate, shall be dissatisfied with any proceeding of any licensing court assembled for granting certificates as aforesaid, whether in granting or refusing or otherwise disposing of any such application, it shall be lawful to such member of the licensing court, proprietor or occupier to appeal therefrom to the next court of appeal from such licensing court: Provided always that such appeal shall be lodged with the clerk to such court of appeal within ten days after such proceeding; and provided that such appellant, being a proprietor or occupier as aforesaid, shall find caution to abide such appeal and the expenses thereof, and shall give intimation of such appeal to the opposite party and to the licensing court of whose proceeding he complains.

Refusal of new
certificate by
licensing court
to be final.

23. Notwithstanding anything contained in the immediately preceding section or in any other enactment, no appeal shall lie to any court of appeal against any proceeding of any licensing court assembled for granting certificates as aforesaid, in refusing any application for a new certificate, but every such proceeding and refusal shall be final.

Penalty on
clerk for un-
duly giving or
refusing
certificate.

24. If any clerk to a licensing court shall knowingly and wilfully issue or deliver any such certificate as aforesaid, contrary to the deliverance in such book or register as aforesaid, or to any person not duly authorised to receive the same by such court, or if any such clerk shall knowingly and wilfully insert any untrue date in any such certificate, or shall refuse to deliver such certificate to any person duly authorised as aforesaid to receive the same, every such clerk shall for every such offence forfeit the sum of twenty pounds, if convicted of such offence before the sheriff during the period for which such certificate appears to have been granted or ought to have been granted, or within six months after the expiry of the said period.

List of persons
who have ob-
tained cer-
tificates to be
sent to the in-
land revenue
collector of the
district.

25. Within eight days next after the time during which such meetings as aforesaid may be held respectively shall have expired, the clerk to the licensing court shall transmit to the collector of inland revenue, in the district in which any such certificate shall have been granted, a list of all the persons therein who have obtained such certificates for that district for the current year, which list shall be made out from the book or register herein-before appointed to be kept by such clerk, and shall contain the same heads and titles, filled up according to the deliverance signed on behalf of the court by the chairman of the meeting; and every such list, when so made out, shall be duly certified by the subscription of such clerk, and transmitted as aforesaid; and such clerk shall, upon the delivery thereof, be entitled to receive from such collector as aforesaid a remuneration for his trouble in making out the same, at and after the rate of one penny for the name of each person contained in such list, to whom it has been resolved that a certificate

shall be granted as aforesaid ; and if any such clerk shall refuse or neglect to make out and send such lists as aforesaid, he shall for every such offence forfeit the sum of five pounds, to be recovered, with the authority of the Commissioners of Inland Revenue, before the sheriff, within six months next after the offence has been committed.

26. Every clerk to a licensing court shall, when lawfully required, make out from the book or register to be kept by him as aforesaid a duplicate or counterpart of any certificate issued by him, for which he shall be entitled to receive a fee of one shilling, which duplicate, being duly certified by such clerk, shall be admitted as sufficient evidence of the facts therein contained, and of the terms of such certificate, in all courts and legal proceedings, without production of the particular certificate originally granted.

Clerk to make
a duplicate of
the certificate
when required.

27.—(1) Subject as hereinafter provided it shall not be lawful for the clerk of the peace, or sheriff clerk of any county or district, or the town clerk of any burgh, to demand or receive any greater or additional fee or remuneration for anything done under this Act than is authorised by the Seventh Schedule annexed hereto, and the fees demandable in respect of proceedings for the confirmation of certificates under this Act shall be as nearly as may be the same as those for like proceedings authorised by the said Schedule.

Fees to clerks.

(2) The town clerks of those parliamentary burghs, the magistrates of which were not at the date of passing of the Public Houses Acts Amendment (Scotland) Act, 1862, authorised to grant certificates, shall pay to any clerks of the peace, who held office at that date and continue to hold such office at the passing of this Act in the counties within which such burghs are situated, one half of the fees received by such town clerks in respect of applications for certificates and disposal of the same under this Act during the time such clerks of the peace shall continue to hold office.

25 & 26 Vict.
c. 35.

(3) It shall be lawful for the Court of Session, on the application of the Lord Advocate, from time to time by Act of Sederunt, to prescribe a table or tables of fees payable to a sheriff clerk or town clerk for anything done under this Act, and of fees payable to a clerk of the peace for anything done under this Act or otherwise ; and any table so prescribed shall have full force and effect notwithstanding any general or special provision contained in this or any other Act ; and thereafter no such clerk as aforesaid shall demand or receive any greater or additional fee or remuneration for anything so done than is authorised in such table.

(4) The town clerk of any burgh, the magistrates of which have not power to grant certificates under the existing Acts, shall pay to the clerk of the peace holding office at the passing of this Act in the county within which such burgh is situate, so long as such clerk of the peace shall continue to hold office, one-half of the fees from time to time received by him in respect of all duties transferred or which may be transferred by this Act from such clerk of the peace to such town clerk.

(5) The clerk of the peace of every county shall pay to the town clerk holding office at the passing of this Act of any burgh

situate within such county, the magistrates of which have power to grant certificates under the existing Acts, so long as such town clerk shall continue to hold office, one-half of the fees from time to time received by him in respect of all duties transferred or which may be transferred by this Act from such town clerk to such clerk of the peace.

(6) Where, by the operation of this Act, duties are transferred from one clerk of the peace to another clerk of the peace, the clerk of the peace to whom such duties are transferred shall pay to any clerk of the peace holding office at the passing of this Act from whom such duties are transferred, so long as such last-mentioned clerk shall continue to hold office, one-half of the fees from time to time received by him in respect of all duties so transferred.

(7) If any clerk shall demand or receive any greater or additional fee, or any other reward for anything done under this Act than is authorised thereby, such clerk so offending shall be liable on summary conviction to a fine of five pounds for every such offence.

Proceedings
for confirming
new certificate.

28.—(1) The application for confirmation of a certificate shall be in the form as nearly as may be set forth in the Eighth Schedule annexed hereto, and shall be lodged (together with the certificate) with the clerk to the court of appeal within ten days after the grant of the certificate.

(2) The court of appeal shall have power to award expenses to or against any party to such proceedings, except the procurator fiscal for the public interest, as they shall think just.

Opposition to
confirmation of
new certificates.

29. Any person who appears before a licensing court, and opposes the grant of a new certificate, and no other person, excepting the procurator fiscal for the public interest, may appear and oppose the confirmation of such grant by the court of appeal.

Deliverances to
be entered in
book or
register.

30. All deliverances of or applications to a court of appeal, whether for the confirmation of new certificates or otherwise, shall be entered in the book or register appointed to be kept in terms of the Fifth Schedule annexed hereto, and where the clerk to the court of appeal is not clerk to the licensing court, he shall, for the purpose of such entry, forthwith intimate all such deliverances and applications to the clerk to the licensing court.

Powers to
transfer cer-
tificates.

31.—(1) A licensing court may at any October half-yearly meeting grant to a new tenant or occupant a transfer of any certificate then subsisting for any house or premises as aforesaid.

(2) If any person holding a certificate for any house or premises as aforesaid shall die before the expiration of his certificate, or in the case of the bankruptcy, insolvency or incapacity of the holder of such certificate occurring before the expiration of his certificate, it shall be lawful for any two or more of the members of the licensing court, within whose jurisdiction such house and premises are situated, to grant to the executors, representatives or disponees of the person so dying, or to the trustee, judicial factor or curator bonis to such holder, and who shall respectively be possessed of such house or premises, a transfer of the certificate for such house

or premises to keep and continue the same as before such death, bankruptcy, insolvency or incapacity until the next general half-yearly meeting of the licensing court.

32. The transfer certificate to be granted as aforesaid shall be in the form contained in the Ninth Schedule annexed hereto, and shall be held on the same terms and conditions, and in the same manner, as the certificate originally granted, for which transfer certificate a fee of one shilling and no more shall be payable to the clerk.

Form of
transfer of
certificate.

33. Where any applicant for the grant or renewal of a certificate has through inadvertence or misadventure failed to comply with any of the preliminary requirements of this Act, or where having duly lodged his application an applicant has died before the meeting of the licensing court, the court may, if they shall so think fit, and upon such terms as they think proper, postpone the consideration of the application to an adjourned meeting, and, if at such adjourned meeting they are satisfied that such terms have been complied with, they may proceed to grant such certificate to such applicant or, as the case may be, to his executors, representatives or disponees (being possessed of the premises in respect of which the application has been made), as if the preliminary requirements of this Act had been complied with.

Power to post-
pone considera-
tion of applica-
tion.

34. Subject as hereinafter provided the forms of certificate granted under the powers of this Act shall be those contained in the Sixth Schedule annexed hereto: Provided that every certificate in force at the commencement of this Act shall be read as if after the words "breach of the peace" occurring therein there were inserted the word "drunkenness."

Forms of
certificates.

35. It shall be lawful for a licensing court, where they shall deem it inexpedient to grant to any person a certificate in the form applied for, to grant him a certificate in any other of the forms contained in the Sixth Schedule annexed hereto: Provided always that, in any particular locality within any county or district or burgh requiring other hours for opening and closing inns and hotels and public-houses than those specified in such forms of certificates applicable thereto, it shall be lawful for such court to insert in such certificates such other hours, not being earlier than six of the clock or later than eight of the clock in the morning for opening, or earlier than nine of the clock or later than eleven of the clock in the evening for closing the same, as they shall think fit.

Power to vary
form and hours
of certificates.

36. No such certificate as aforesaid shall entitle any person to keep an inn and hotel or public-house, or to obtain an excise licence for selling exciseable liquors, by retail, to be drunk or consumed in any other house or premises than the house and premises specified in such certificate: Provided always that nothing in this Act contained shall be construed to prohibit any person, who shall have obtained such certificate, from selling exciseable liquors in houses, booths or other places, at the time and within the limits of the ground, town or place in or upon

Certificate to be
confined to one
house and
premises.

which is held any lawful fair, in the same parish with the house or premises for which any person shall have obtained a certificate as aforesaid, or in any parish immediately adjoining thereto.

Certificates for the sale of spirits and wine to include authority to sell porter, ale, beer, &c.

37. Every certificate granted or to be hereafter granted for the sale by retail in any house or premises of spirits or wine shall include an authority for the sale by retail in such house or premises of porter, ale, beer, cyder and perry, and such certificate shall have the effect of enabling the party in favour of whom the same shall have been granted to obtain any licence for such purposes: Provided always that nothing herein contained shall be held to prevent the licensing court from granting a certificate in any of the forms in the Sixth Schedule annexed hereto, for the sale by retail of wine, porter, ale, beer, cyder or perry, or of porter, ale, beer, cyder or perry only.

Six-day and early closing certificates.

38.—(1) Where, on the occasion of an application for a new certificate or transfer or renewal of a certificate for an inn and hotel, the applicant at the time of his application applies to the licensing court to insert in his certificate a condition that he shall keep the premises, in respect of which such certificate is or is to be granted, closed during the whole of Sunday, the licensing court shall modify such certificate by the omission therefrom of the words “and travellers.”

(2) Where, on the occasion of any application for a new certificate or transfer or renewal of a certificate for an inn and hotel or a public-house, the applicant applies to the licensing court to insert in his certificate a condition that he shall close the premises, in respect of which such certificate is or is to be granted, one hour earlier at night than such premises would otherwise have to be closed, the licensing court shall modify such certificate by the insertion therein of words importing such condition.

(3) Nothing in this Act shall preclude the keeper of a licensed inn and hotel holding a six days' certificate from selling and giving out exciseable liquor on Sunday to any person who is lodging in his inn and hotel.

Certificates granted contrary to this Act void.

39. If any certificate shall be granted contrary to the terms and provisions of this Act the same shall be null and void to all intents and purposes.

Special permission to keep houses, &c. open during particular times.

40. On a representation^{*} being made to any two members of a licensing court, by any person holding a certificate for keeping an inn and hotel or public-house, and duly licensed to sell exciseable liquors to be consumed on the premises, that it is intended that any public or special entertainment shall take place therein, or in any other place or premises situated within the jurisdiction of such court, during any particular time, such two members of the licensing court may, if they shall think fit, and on being satisfied that such inn and hotel or public-house, place or premises possesses the necessary accommodation, and that the entertainment is for a public or special occasion of a legitimate and proper character and not originating directly or indirectly with the person holding

such certificate, grant such person a special permission in writing either—

- (1) to keep such inn and hotel or public-house, place or premises open and to sell therein, on such public or special occasion, and for that purpose only, such exciseable liquors as he may be duly licensed to sell as aforesaid during such time, and beyond the hour prescribed by his certificate for closing, Sunday excepted; or
- (2) to open any restaurant, for which a public-house certificate is held, or keep the same open for the sale and consumption of provisions and refreshments of any kind other than exciseable liquors, on such public or special occasion, and for that purpose only during such time, and before or beyond the hours prescribed by his certificate for opening and closing respectively, Sunday excepted,

and in either case under such regulations as such members of the licensing court shall think fit to appoint; and it shall be lawful for a licensing court, at any April half-yearly meeting for the granting of certificates, to make such general regulations touching such permissions as they shall think fit, and such special permissions shall be subject to such general regulations: Provided always that no such special permission shall be granted unless forty-eight hours at least before applying for such permission the applicant has served on the chief constable or superintendent of police of the district notice of his intention to apply for the permission, setting out his name and address, the place and occasion in respect of which the permission is required, the persons to whom the application is intended to be made, the period for which the permission is to be in force and the hours to be specified in the permission: and provided further that the person obtaining such special permission shall lodge the same with the chief constable or superintendent of police of the district at least twenty-four hours before the commencement of such public or special entertainment, and such chief constable or superintendent of police shall furnish such person with a certified copy thereof, which shall be shown to any constable requiring to see the same: and provided also that the party holding such special permission to sell exciseable liquors shall also have obtained an occasional excise licence in that behalf.

41.—(1) Without prejudice to their other powers under this Act, a licensing court may from time to time make byelaws as they think fit for the purposes after mentioned, videlicet:—

Licensing court
may make bye-
laws.

- (a) for closing licensed premises wholly or partially on New Year's Day, and on such other days not being more than four in any one year as the licensing court may deem fit and expedient for special reasons;
- (b) for enforcing non-residence of a certificate holder upon licensed premises, or complete separation of such premises from his dwelling-house;
- (c) for requiring all wines and spirits kept by a grocer within licensed premises to be sold in corked or stoppered bottles, vessels, jars or casks, but the byelaw shall not apply to

licensed premises where no groceries are kept or sold, and where a bonâ fide wholesale business in exciseable liquors is carried on;

- (d) for requiring every holder of a certificate authorising the consumption of exciseable liquors upon the premises to keep, and from day to day renew, a sufficient supply of drinking water and such eatables, all so displayed as the byelaw shall specify, and requiring him to offer and supply the same as may be laid down in the byelaw;
- (e) for fixing the procedure to be followed in making applications for special permissions;
- (f) for printing a list of all applications coming before any meeting of the licensing court, with other information as may be considered by them necessary.

(2) A byelaw made by a licensing court under this section shall not come into operation until it has been confirmed by the Secretary for Scotland.

(3) The Secretary for Scotland may, by order under his hand, provide for the publication of all byelaws under this section, both as proposed to be made and as confirmed, so as to afford due notice thereof, and an opportunity of objecting to any proposed byelaw, to persons interested.

(4) Any person holding a certificate for the sale of exciseable liquors who shall commit a breach of any byelaw under this section shall be deemed guilty of a breach of his certificate, and shall, on conviction thereof, be liable in the penalties and expenses and forfeitures for such offence by this Act provided.

(5) A copy of any byelaws made under this section signed and certified by the clerk to a licensing court to be a true copy and to have been duly confirmed shall be evidence, until the contrary is proved, in all legal proceedings of the due making, confirmation and existence of such byelaws, without further or other proof.

Control of
licensing court
over structure
of licensed
premises.

42.—(1) Where a person is intending to apply for a new certificate for the sale of exciseable liquors by retail to be consumed on the premises, he shall along with his application deposit with the clerk to the licensing court a plan of the premises in respect of which the application is to be made.

(2) Any reconstruction of or alteration in any licensed premises, for the sale by retail of exciseable liquors to be consumed thereon, shall not be made without the consent of the licensing court assembled either at the general half-yearly meeting or at any adjournment thereof, or at such other time in the course of the year as the licensing court may fix, and the licensing court may, before giving their consent, require plans of the proposed reconstruction or alterations to be deposited with their clerk at such time as they may determine; and if any such reconstruction or alteration is made, save under the order of some lawful authority, without such consent as aforesaid, the sheriff, on a complaint at the instance of such clerk in the sheriff court, may by order declare the certificate to be forfeited, or direct that, within a time fixed by the order, the premises shall be restored to their original condition.

(3) On any application for the renewal of a certificate for the sale by retail of exciseable liquors to be consumed on the premises, the licensing court may require a plan of the premises to be produced before them and to be deposited with their clerk, and on renewing any such certificate they may, by order, direct that, within a time fixed by the order, such alterations as they think reasonably necessary to secure the proper conduct of the business shall be made in that part of the premises where exciseable liquor is sold or consumed, but any such order shall be subject to an appeal to a court of appeal in terms of this Act, and if any such order for structural alteration is made and complied with, no further requisition for the structural alteration of the premises shall be made within the next five years in the event of the certificate being renewed from year to year during that period. If the person holding a certificate makes default in complying with any such order, he shall, on summary conviction before the sheriff, upon a complaint at the instance of such clerk, be liable to a fine not exceeding twenty shillings for every day during which the default continues.

(4) Any person interested in any premises about to be constructed or in course of construction for the purpose of being used as premises for the sale of exciseable liquors to be consumed on the premises may apply to the licensing court and to the court of appeal for a provisional grant and confirmation of a certificate in respect of such premises, and the licensing court and court of appeal, if satisfied with the plans submitted to them of such premises, and that, if such premises had been actually constructed in accordance with such plans, they would on application have granted and confirmed such a certificate in respect thereof, may make such provisional grant and order of confirmation accordingly. A provisional grant and order of confirmation shall not be valid until it has been declared to be final by an order of the licensing court made, after such notice has been given as may be required by the licensing court, at a general half-yearly meeting or at an adjourned meeting thereof. Such declaration shall be made if the licensing court are satisfied that the premises have been completed in accordance with such plans as aforesaid, and are also satisfied that no objection can be made to the character of the holder of such provisional certificate. The licensing court may also grant a provisional certificate to a holder of any form of certificate to enable him to carry on business in temporary premises during the reconstruction of his licensed premises. A provisional grant and confirmation of a certificate shall be subject to the same conditions, as to the giving of notices and generally as to procedure, to which such grant and confirmation would be subject if they respectively were not provisional.

PART III

EXCISE LICENCES.

43. No licence for the sale of spirits, wine, porter, ale, beer, cyder, perry or other exciseable liquors by retail, whether to be

Excise licence
for exciseable
liquors not to

be granted
without cer-
tificate.

drunk or consumed on the premises of the person licensed or not, shall be granted by the Commissioners of Inland Revenue, or by any officer of Inland Revenue, to any person in Scotland who shall not produce to the said Commissioners or officer a certificate granted in terms of this Act, enabling the party to obtain such licence, and every licence which shall be granted contrary to the terms of this Act shall be null and void to all intents and purposes.

Excise licence
for table beer
not to be
granted with-
out certificate.
24 & 25 Vict.
c. 21.

44. No licence in the terms of the Revenue (No. 1) Act, 1861, for the sale in any house, shop or premises of table beer at a price not exceeding one penny halfpenny the quart, and not to be drunk on the premises, shall be granted by the Commissioners or by any officer of Inland Revenue to any person in Scotland who shall not produce to the said Commissioners or officer a certificate in terms of this Act, and such certificate shall be applied for, granted, confirmed, transferred and renewed in the manner and subject to all the provisions applicable to other certificates in the like circumstances granted, confirmed, transferred and renewed in terms of this Act, and, *mutatis mutandis*, may be in the form No. 3 (so far as the same is applicable) of the Sixth Schedule annexed hereto.

Excise licence
for sweets not
to be granted
without cer-
tificate.

45. No licence for the sale of sweets by retail, whether to be drunk or consumed on the premises of the person licensed or not, shall be granted by the Commissioners or by any officer of Inland Revenue to any person who shall not produce to the said Commissioners or officer a certificate granted in terms of this Act, enabling the party to obtain such licence, and such certificate shall be applied for, granted, confirmed, transferred and renewed in the manner and subject to all the provisions applicable to other certificates in the like circumstances granted, confirmed, transferred and renewed in terms of this Act, and, *mutatis mutandis*, may be in the Form No. 2, or in the Form No. 3 (so far as the same is applicable) of the Sixth Schedule annexed hereto.

Forfeiture of
excise whole-
sale licences in
certain cases.

46. Every holder of an excise licence for the sale of exciseable liquor obtained without the production of a certificate from a licensing court, who shall be guilty of an offence against the provisions of the sections of this Act whereof the marginal notes are respectively "Distribution of liquor from vans," "Penalties for trafficking without certificate," "Penalty for bartering or selling spirits without certificate" and "Penalty for hawking exciseable liquors," or any of such provisions, or of knowingly permitting any breach of the peace, drunkenness, or riotous and disorderly conduct within his premises, or selling or supplying exciseable liquors to persons who are in a state of intoxication, or selling or giving out the same on a Sunday, shall, on conviction thereof, forfeit such licence, and shall be incapable of obtaining or holding any such licence for a period of two years from the date of such conviction, and it shall be the duty of the clerk of the convicting court to transmit forthwith to the Commissioners of Inland Revenue the particulars of any such conviction.

47. Notwithstanding anything contained in the Excise Act, 1835, no licence to sell exciseable liquors in any theatre or other place of public entertainment, erected after the commencement of this Act, shall be granted by the Commissioners of Inland Revenue to any person who shall not produce a certificate granted in terms of this Act.

Excise licence for new theatre not to be granted without certificate.
5 & 6 Will. 4. c. 39."

48. The holder of a six-day certificate or of an early closing certificate may obtain from the Commissioners of Inland Revenue any licence granted by such Commissioners which he is entitled to obtain in pursuance of any such certificate, upon payment of six-seventh parts of the duty which would otherwise be payable by him for a similar licence not limited to six days or to such early closing respectively; and the holder of a certificate containing conditions rendering such certificate a six-day certificate as well as an early closing certificate shall be entitled to a remission of two-sevenths of the duty. In this section the expression "six-day certificate" shall include a certificate for a public-house in Scotland.

Remission of duty in case of six-day and early closing excise licence.

49. Where any licensing court refuses to renew a certificate, and an appeal against such refusal is duly lodged, and such certificate expires before the appeal is determined, the Commissioners of Inland Revenue may, by order, permit the person, whose certificate is refused, to carry on his business during the pendency of the appeal upon such conditions as they think just, and subject to such conditions any person so permitted may, during the continuance of such order, carry on his business in the same manner as if the renewal of the certificate had not been refused.

Continuance of licence during pendency of appeal against licensing court's refusal to renew.

50. Notwithstanding any enactment to the contrary, it shall not be necessary for a person holding a canteen under the authority of a Secretary of State or of the Admiralty to obtain a certificate to enable him to obtain or hold any excise licence for the sale of any exciseable liquor, and an excise licence may be granted to any such person accordingly.

Excise licence for naval and military canteens may be granted without certificate.

51. Every excise licence for the sale by retail of any exciseable liquor, whether to be consumed on the premises or not, which shall be taken out in Scotland shall expire on the twenty-eighth day of May following the granting thereof, anything in the Excise Licences Act, 1825, or in any other Act contained to the contrary notwithstanding.

Date of termination of excise licence.
6 Geo. 4. c. 81.

PART IV.

OFFENCES AND PENALTIES.

52. All exciseable liquor sold by retail by a holder of a certificate shall, unless sold in cask or bottle, or in quantities less than a pint, be sold in measures marked according to the imperial standards. Every person, who acts or suffers any person under his control or in his employment to act in contravention of this section, shall be liable to a penalty not exceeding for the first offence ten pounds, and not exceeding for any subsequent offence twenty

Sale to be by standard measure.

pounds, and shall also be liable to forfeit the illegal measure in which the liquor was sold.

Penalties for
breach of
certificate.

53. Every certificate, to be granted under the authority of this Act, shall be and be held on the terms, provisions and conditions therein contained; and in case any person holding such certificate, and having any excise licence for the sale of exciseable liquors, to him in that behalf granted, shall offend against any of the terms and conditions contained in such certificate, every person so offending shall for every such offence forfeit and undergo the several penalties and disabilities hereinafter mentioned; that is to say, for the first offence a sum not exceeding five pounds, with the expenses of conviction, to be ascertained upon conviction; and, in addition to such penalty, the certificate granted to such person may be declared to be forfeited and to become void and null; and for the second offence the offender shall forfeit a sum not exceeding ten pounds, with the expenses of conviction, to be ascertained upon conviction; and, in addition to such penalty, the certificate granted to such person may be declared to be forfeited and to become void and null; and for the third offence, the offender shall forfeit a sum not exceeding twenty pounds, with the expenses of conviction, to be ascertained upon conviction; and, in addition to such penalty, the certificate granted to such person shall be declared to be forfeited and to become void and null.

What shall be
deemed second
and third
offences.

54. If any person shall have been convicted of any breach of the terms and conditions of the certificate held by him in one year as a first offence, and such person shall, in the following or any subsequent year within three years after, be charged with a breach of the terms and conditions of any other such certificate subsequently obtained by such person, and be thereof convicted, such conviction shall be deemed and taken to be a conviction for a second offence; and so in like manner, if such person shall be again convicted within three years, it shall be deemed and taken to be a conviction for a third offence within the meaning of this Act; and that notwithstanding of such second or third offence being in breach of other and different terms and conditions, or of other and different certificates, obtained subsequently to the certificate for the breach of the conditions of which the first or second conviction took place.

Saving for sales
on order by
certain officials.

55. Notwithstanding the provisions of this Act, it shall be lawful for any holder of any certificate to give out and supply exciseable liquor from his licensed premises, at any time when such giving out and supply would be otherwise illegal, on an order stating why such liquor is required, signed by an officer of police, or procurator fiscal, or medical official, which signed order shall be sufficient defence in any prosecution, provided it be transmitted by post, with a note of the description and quantity of liquor supplied and the name and address of the person so supplied, to the procurator fiscal within forty-eight hours after the supply is made. The procurator fiscal shall transmit a list of such orders received by him, showing the names and descriptions of all persons signing the same during the current half year, to the clerk of the

licensing court seven days before the day fixed for each half-yearly meeting of such court.

56. Nothing in this Act contained as to days or hours of closing shall preclude the sale at any time, on any day other than Sunday, at a railway station of exciseable liquors to persons arriving at or departing from such station by railroad. Saving for sales at railway stations.

57. If any person licensed to sell, by retail, any exciseable liquors, not to be consumed on the premises, shall take or carry, or authorise or permit or suffer to be taken or carried, any such exciseable liquors out of or from the house, shop or premises of such licensed person, for the purpose of being sold or hawked on his account, or for his benefit or profit, or for the purpose of being drunk or consumed for his benefit or profit in any other house, or in any tent, shed or other premises, of any kind whatever, belonging to such person, or hired, used or occupied by him, or in which he may be interested, such exciseable liquors shall be deemed and taken to have been drunk or consumed upon the premises of the person so licensed, and such person shall be deemed guilty of a breach of his certificate, and shall be liable in the penalties and expenses and forfeitures for such offence, by this Act provided. Exciseable liquors when to be deemed to have been drunk on the premises.

58. Every holder of a certificate, who sells or allows any person to sell, to be consumed on the premises, any description of spirits to any person apparently under the age of sixteen years, shall be liable to a penalty not exceeding twenty shillings for the first offence and not exceeding forty shillings for the second and any subsequent offence. Sale of spirits to children under sixteen illegal.

59.—(1) Every holder of a certificate, who knowingly sells or delivers, or allows any person to sell or deliver, save at the residence or working place of the purchaser, any description of exciseable liquor to any person under the age of fourteen years for consumption by any person on or off the premises, excepting such exciseable liquors as are sold or delivered in corked and sealed vessels in quantities not less than one reputed pint for consumption off the premises only, shall be liable to a penalty not exceeding forty shillings for the first offence, and not exceeding five pounds for any subsequent offence; and every person, who knowingly sends any person under the age of fourteen years to any place where intoxicating liquors are sold, or delivered, or distributed, for the purpose of obtaining any description of exciseable liquor, excepting as aforesaid, for consumption by any person on or off the premises, shall be liable to a penalty not exceeding forty shillings for the first offence, and not exceeding five pounds for any subsequent offence. Sale of exciseable liquors to children under fourteen illegal.

(2) In this section the expression "corked" means closed with a plug or stopper, whether it is made of cork or wood or glass or some other material; and the expression "sealed" means secured with any substance without the destruction of which the cork, plug or stopper cannot be withdrawn.

(3) Nothing in this section shall prevent the employment, by the holder of a certificate, of a member of his family or his servant or apprentice as a messenger to deliver exciseable liquors.

Sunday sales to
travellers.

60.—(1) If the keeper of a licensed inn and hotel sell or give out exciseable liquor on Sunday to any traveller, except for the personal use of, and to be drunk by, such traveller within such inn and hotel or on the premises belonging thereto, the keeper of such inn and hotel shall be deemed guilty of a breach of his certificate, and shall, on conviction thereof, be liable in the penalties and expenses and forfeitures for such offence by this Act provided.

(2) If any traveller shall induce the keeper of a licensed inn and hotel, or the servant of such keeper, to sell or give out to him exciseable liquors on Sunday, except as aforesaid, such traveller shall be guilty of an offence, and shall be liable on summary conviction to a penalty not exceeding forty shillings.

Penalty on persons falsely
representing
themselves to
be travellers.

61. Every person who by any wilfully false representation shall induce any inn and hotel keeper, or the servant of any inn and hotel keeper, to sell or give out to him exciseable liquors on any Sunday, or to sell or give out to him exciseable liquors on any other day during hours when the sale of exciseable liquors, excepting to lodgers or travellers, is prohibited by the certificate of such inn and hotel keeper, shall thereby be guilty of an offence and, on being convicted thereof by any sheriff or any one justice of the peace or magistrate, shall forfeit and pay a penalty not exceeding five pounds.

Harbouring
constables
while on duty,
&c.

62. If any licensed person—

(1) knowingly harbours or knowingly suffers to remain on his premises any constable during any part of the time appointed for such constable being on duty, unless for the purpose of keeping or restoring order or in execution of his duty; or

(2) supplies any liquor or refreshment, whether by way of gift or sale, to any constable on duty unless by authority of some superior officer of such constable; or

(3) bribes or attempts to bribe any constable;

he shall be liable to a penalty not exceeding for the first offence ten pounds, and not exceeding for the second or any subsequent offence twenty pounds.

Distribution of
liquor from
vans.

63.—(1) It shall not be lawful for any person holding a licence or certificate for the sale of exciseable liquors, or any servant of such person—

(a) to sell, distribute or deliver to a customer any exciseable liquor from any van or other vehicle, unless, before such van or other vehicle leaves the premises, in respect of which such licence or certificate is held, such liquor has been ordered by the customer, and the amount thereof to be sold, distributed or delivered has been entered in a delivery book, pass book or invoice, and in a day book, which delivery book, pass book or invoice shall be carried by the driver of such van or other vehicle, and which day book shall be retained in the aforesaid premises, and such delivery book, pass book or invoice, as well as such day book, shall specify the name and address of each person to whom such liquor is being conveyed, and the

- *quantity and description of liquor to be delivered to each person; or
- (b) to carry in any such van or other vehicle, while in use for distribution or delivery to customers, any exciseable liquor not entered in the delivery book, pass book or invoice, and in the day book; or
 - (c) to deliver from such van or other vehicle any exciseable liquor to any person other than a person whose name and address are specified as aforesaid, or anyone authorised by such person to receive such liquor at the address so specified.

(2) It shall be lawful for any constable to examine at any time any such van or other vehicle used for carrying exciseable liquors, and the driver of such vehicle and the holder of the licence or certificate, or his servant having custody of the day book hereinbefore mentioned, shall be bound to exhibit to any constable, for his examination, his delivery book, pass book, invoices or day book as the case may be, and any person who shall refuse to allow any constable to examine such van or other vehicle, or shall fail to exhibit his delivery book, pass book, invoices or day book for such examination, or shall make any fictitious entry therein, shall be guilty of an offence under this section.

(3) Every person convicted of an offence against any of the foregoing provisions of this section shall be deemed guilty of the offence of hawking exciseable liquors, and shall be liable in the penalties for such offence provided by this Act; and every holder of a certificate, who is so convicted, and (unless he proves to the satisfaction of the court that such offence was committed without his knowledge or against his consent) every holder of a certificate, whose servant is so convicted, shall also be deemed guilty of a breach of his certificate, and shall be liable in the penalties and expenses and forfeitures for such offence provided by this Act.

(4) If any person shall induce the owner or person in charge of a van or other vehicle, used for delivering exciseable liquors, to sell or supply to him therefrom any exciseable liquor contrary to the terms of this Act, such person shall be guilty of an offence and shall be liable, on summary conviction, to a penalty not exceeding forty shillings.

64. No public rates or taxes shall be collected in any premises licensed for the sale of exciseable liquor, nor in any office, garden or court therewith occupied, and everyone collecting rates or taxes therein shall be guilty of an offence and shall be liable, on summary conviction, to a penalty not exceeding forty shillings.

Collection of rates and taxes on licensed premises prohibited.

65.—(1) Every person trafficking in any exciseable liquors, in any place or premises, without a certificate to him in that behalf granted, according to the provisions of this Act, shall, upon his being convicted thereof, as hereinafter mentioned, forfeit and pay for the first offence a sum not exceeding fifty pounds, with the expenses of conviction, to be ascertained upon conviction; and for the second offence the offender shall forfeit a sum not exceeding one hundred pounds, with the expenses of conviction, to be

Penalties for trafficking without certificate.

ascertained upon conviction; and for the third and every subsequent offence the offender shall forfeit a sum not exceeding one hundred pounds, with the expenses of conviction, to be ascertained upon conviction: Provided always that such respective penalties shall be over and above any penalty, which such person so convicted may have incurred or paid, or be liable to pay, for or by reason of such trafficking under any Act relating to inland revenue or excise.

(2) Any person prosecuted for such trafficking may be legally convicted thereof on his own confession, or on proof by the oath of one or more credible witness or witnesses, or other legal evidence.

Penalty for
bartering or
selling spirits
without cer-
tificate.

66. Every person bartering or selling spirits without having obtained a certificate, and every dealer in groceries or other provisions, to be consumed elsewhere than on the premises, supplying, whether gratuitously or otherwise, spirits to be consumed on the premises, shall be deemed guilty of an offence, and shall for such offence forfeit and pay the penalties provided in the immediately preceding section: Provided always that any person, who shall have been three times convicted of any offence against the provisions of this section, shall be incapable of holding a licence for the sale of exciseable liquors in all time coming.

Penalty for
hawking excise-
able liquors.

67. Every person hawking exciseable liquors shall thereby be guilty of an offence, and may be taken into custody by any constable or, in the absence of any constable, by any person whomsoever, and may be detained in any police office or police-cells or other convenient place, and, not later than in the course of the first lawful day after he shall have been so taken into custody, shall be brought before a justice of the peace or magistrate, or, if not so taken into custody, or if he shall have been liberated on bail or pledge, may be summoned to appear before a justice of the peace or magistrate, and on being convicted of such offence shall forfeit and pay a penalty not exceeding ten pounds.

Penalty on dis-
orderly persons
refusing to quit
licensed houses.

68. Every person who shall be riotous, quarrelsome or disorderly in any shop, house, premises or place licensed for the sale of exciseable liquors by retail, whether to be consumed on the premises or not, and shall refuse or neglect to quit such shop, house, premises or place upon being requested so to do by the occupier or manager thereof, or his agent or servant, or by any constable, and every person who shall refuse to quit such shop, premises or place at the time of closing, prescribed under the provisions of this Act, on being required to do so as aforesaid, shall thereby be guilty of an offence, and may be taken into custody by any constable, and detained in any police office or police-cells or other convenient place, and, not later than in the course of the first lawful day after he shall have been so taken into custody, shall be brought before a sheriff or any one justice of the peace or magistrate, or, if not so taken into custody, or if he shall have been liberated on bail or pledge, may be summoned to appear before a sheriff or any one justice of the peace or magistrate, and on being convicted of such offence shall forfeit and pay a penalty not exceeding forty shillings; and all constables are hereby authorised and empowered to assist

in expelling such riotous, quarrelsome or disorderly person refusing to quit the premises at the hour of closing from such shops, houses, premises and places.

69. If any person shall induce the holder of a dealer's or grocer's certificate, or any person who is licensed to sell exciseable liquors not to be consumed on the premises, to sell or supply to him any exciseable liquor, and he shall drink the same, or part thereof, on the said licensed premises, such person shall be guilty of an offence and shall be liable, on summary conviction, to a penalty not exceeding forty shillings.

Penalty for inducing grocer to sell exciseable liquors illegally.

70.—(1) Every person found in a state of intoxication, and incapable of taking care of himself, and not under the care or protection of some suitable person, in any street, thoroughfare or public place, whether a building or not, or on any licensed premises, and every person who is drunk while in charge in any street or other place of any carriage, horse, cattle, or steam engine, or when in the possession of any loaded firearms, shall be thereby guilty of an offence, and may be taken into custody by any constable, and detained in any police office or police cells or other convenient place, and, not later than in the course of the first lawful day after he shall have been so taken into custody, shall be brought before a sheriff or any one justice of the peace or magistrate, or, if not so taken into custody, may be summoned to appear before a sheriff, justice of the peace or magistrate, and on being convicted of such offence shall be liable to a fine not exceeding forty shillings and, failing payment, to imprisonment for a period not exceeding thirty days.

Penalties for drunkenness, riotous behaviour and other offences involving drunkenness.

Every person who in any street, thoroughfare or public place, whether a building or not, or on any licensed premises, behaves while drunk in a riotous or disorderly manner, or while drunk uses obscene or indecent language to the annoyance of any person, shall be liable, on summary conviction, to a fine not exceeding forty shillings, and, failing payment, to imprisonment for a period not exceeding thirty days, or in the discretion of the court to imprisonment for a period not exceeding thirty days.

(2) If any person is found drunk in any street, thoroughfare or public place, whether a building or not, or on any licensed premises while having the charge of a child apparently under the age of seven years, he shall, if the child is under that age, be liable, on summary conviction, to a fine not exceeding forty shillings, and, failing payment, to imprisonment for a period not exceeding thirty days. If the child appears to the court to be under the age of seven, the child shall for the purposes of this section be deemed to be under that age unless the contrary is proved.

(3) An offence under this section shall be deemed to be an offence mentioned in the First Schedule to the Inebriates Act, 1898.

61 & 62 Vict. c. 60.

(4) The provisions of this section shall, in the burghs to which the general or local Police Acts, specified in Part II. of the Twelfth Schedule annexed hereto, respectively apply, have effect as if they were provisions of and enacted in such Acts and, where enactments dealing with the same matter are mentioned in such Part, in lieu of such enactments, and such Acts and references therein shall be

construed accordingly, both as regards the application of penalties and in all other respects.

If any person, charged with an offence under this section, shall have been taken into custody and liberated on bail or pledge and shall fail to appear at the calling of the case at the first court thereafter, the court may (save as otherwise provided by or under any general or local Police Act applying to a burgh as aforesaid) declare such bail or pledge to be forfeited, and may in addition, if the case in the opinion of the court shall so require, summon him to appear before the court or grant a warrant for his apprehension.

55 & 56 Vict.
c. 55.

(5) For the purposes of this section the expression "public place" shall include any railway station and any place to which the public have access, whether on payment or otherwise, and any public conveyance, and the expressions "carriage" and "cattle" shall have the meanings respectively assigned thereto in the Burgh Police (Scotland) Act, 1892.

(6) For the purposes of this section the expression "public place" shall include the Harbour of Glasgow, the expression "public conveyance" shall include the ferry boats in the River Clyde, as defined by the Clyde Navigation Acts, and the expression "magistrate" shall include the bailie, depute bailie and judge exercising jurisdiction in the court of the bailie of the River and Firth of Clyde.

20 & 21 Vict.
c. 72.

(7) Notwithstanding anything contained in the Police (Scotland) Act, 1857, section thirteen of that Act shall extend to Orkney and Shetland, and have full application therein upon the apprehension of any person charged with an offence against this section, with the substitution (so long as the said Act does not extend generally to Orkney or Shetland) of any sheriff criminal officer, duly authorised by the sheriff, for the chief constable or other officer, and of forty shillings for ten pounds respectively specified therein.

Power to re-
quire person
convicted of
drunkenness to
find caution.
61 & 62 Vict.
c. 60.

71. Where a person is convicted of any offence mentioned in the First Schedule to the Inebriates Act, 1898, the court may, either in addition to or in substitution for any other penalty, order the offender to find caution for good behaviour for any period not exceeding six months and under a penalty not exceeding twenty pounds, and, in default of such caution being found, to be imprisoned for a period not exceeding thirty days.

Prohibition of
sale of excise-
able liquor to
persons con-
victed of drun-
kenness.
53 & 54 Vict.
c. 67.

72.—(1) Where any person is convicted of any offence mentioned in the First Schedule to the Inebriates Act, 1898, and, within the twelve months preceding the date of such conviction, has been convicted at least three other times of any offence so mentioned, the court may order that notice of the conviction, with such particulars as may be prescribed by the Secretary for Scotland, be sent to the police authority (within the meaning of the Police (Scotland) Act, 1890) for the police area in which the court is situate.

(2) Where a court in pursuance of this Act orders notice of a conviction to be sent to a police authority, the court shall inform the convicted person that the notice is to be so sent; and

(a) if the convicted person, within three years after the date of the conviction, purchases or obtains, or attempts to purchase or

* obtain, any exciseable liquor at any premises licensed for the sale of exciseable liquor by retail, or at the premises of any club registered in pursuance of the provisions of this Act, he shall be liable, on summary conviction, to a fine not exceeding for the first offence twenty shillings, and for any subsequent offence forty shillings; and

- (b) if any person holding a certificate for the sale of exciseable liquors by retail, whether for consumption on or off the premises, or any person selling, supplying or distributing exciseable liquor, or authorising such sale, supply or distribution, on the premises of a club registered in conformity with the provisions of this Act, within that period knowingly sells, supplies or distributes, or allows any person to sell, supply or distribute, exciseable liquor to, or for the consumption of, any such person, he shall be liable, on summary conviction, for the first offence to a fine not exceeding ten pounds, and, for any subsequent offence in respect of the same person, to a fine not exceeding twenty pounds.

(3) Regulations shall be made, by the police authority, for the purpose of securing the giving of information to licensed persons and secretaries of clubs, registered under this Act, of orders made under this section, and for assisting in the identification of the convicted persons.

73. Where a husband or wife is a habitual drunkard, as defined by section three of the Habitual Drunkards Act, 1879, and this fact is established in a consistorial action instituted by either spouse, according to the existing law and practice in Scotland, such fact shall be held to be equivalent in law to, and shall have and be treated by the Court as having the same legal consequences and effects as, cruelty and bodily violence by the habitual drunkard towards his or her spouse.

Habitual drunkenness equivalent to cruelty in consistorial action.
42 & 43 Vict. c. 19.

74. Any person, who, being on any premises licensed for the sale of any exciseable liquor, whether for consumption on or off such premises, shall procure, or attempt to procure, any exciseable liquor for consumption by any drunken person, or who shall aid and abet any drunken person in obtaining or consuming any exciseable liquor on any premises so licensed as aforesaid, shall be liable, on summary conviction, to a fine not exceeding forty shillings, or to imprisonment, with or without hard labour, for any period not exceeding one month.

Penalty for procuring drink for drunken person.

75.—(1) Every person found in any shebeen drunk or drinking shall thereby be guilty of an offence, and may at the time be taken into custody by any constable, and detained in any police office or police-cells or other convenient place, and, not later than in the course of the first lawful day after he shall be so taken into custody, shall be brought before a justice of the peace or magistrate, or, if not so taken into custody or if he shall have been liberated on bail or pledge, may be summoned to appear before a justice of the peace or magistrate, and on being convicted of such offence shall forfeit and pay a penalty not exceeding ten shillings.

Penalty on persons found in shebeens drunk or drinking.

(2) The offence under this section, of being found in any shebeen drunk, shall be deemed to be an offence mentioned in the First Schedule to the Inebriates Act, 1898.

Penalties for allowing drinking at refreshment house during hours when licensed houses closed.

76. No exciseable liquor shall be consumed upon premises used as a refreshment house or other place of public resort for the sale or consumption of provisions, confectionery, ice cream, aerated waters or refreshments of any kind, or for the sale or consumption of tobacco or cigars, during the days and hours in which the same premises would, if they were licensed as a public-house under this Act, be closed by law for the sale and consumption of exciseable liquors; and if any person keeping or occupying any such premises allows any exciseable liquor to be consumed thereon in contravention of the provision herein contained, he shall on conviction be liable for the first offence to a penalty not exceeding ten pounds, and for a second or subsequent offence to a penalty not exceeding twenty pounds, unless he proves to the satisfaction of the court that such liquor was so consumed without his knowledge or against his consent.

PART V.

REGISTRATION OF CLUBS.

Register of clubs to be kept.

77.—(1) From and after the commencement of this Act a register shall be kept by the sheriff clerk (herein-after called "the registrar"), in which he shall enter the name of each club to which a certificate of registration is granted under the provisions of this Act; which register shall show the date of such certificate, whether such certificate is granted for the first time or on renewal, the address of the premises to which the certificate is applicable, and the names and addresses of the officials and the committee of management or governing body of the club, and whether the club is tenant or the proprietor and occupier of the said premises. The register and copy of the rules, lodged with the registrar, shall at all reasonable hours be open to inspection by a chief officer of police or any constable authorised by him in writing or any officer of the Inland Revenue, without fee, and by any person on payment of a fee of one shilling.

(2) The registration of a club under this Act shall not constitute the club licensed premises or authorise any sale of exciseable liquors therein which would otherwise be illegal.

Application for registration.

78.—(1) The secretary of any club desiring a certificate of registration shall lodge with the registrar an application signed by the chairman, secretary or authorised law agent of the club, stating the name and object of the club and the address of the premises occupied by the club. Such application shall be accompanied by two copies of the rules of the club, by a list containing the names and addresses of the officials and committee of management or governing body and the names of the members, and by a certificate in, or as nearly as may be in, the form set out in the Tenth Schedule annexed hereto, which certificate shall be signed by two justices of the peace for the county within which such premises are situate, or where such premises are situate within a burgh, either

by two justices of the peace as aforesaid, or by two magistrates of the burgh, or by one justice and one magistrate, and shall also, where such premises are not owned by the club, be signed by the owner of such premises or, where the owner is under any legal disability, by his legal representative. Provided that, where such premises are held under a lease for a term of years which was entered into not later than Whitsunday one thousand nine hundred and three, the signature of such owner shall not be required.

(2) The secretary of any club desiring a renewal of the certificate shall, at a date not later than twenty-one days prior to its expiry, make application to the registrar for such renewal in the same manner and subject to the same incidents as in the case of an original application for registration.

(3) Every club applying either for an original certificate or for a renewal shall, as a condition of registration, make payment to the registrar of a fee of five shillings.

79.—(1) The registrar shall forthwith give notice of such application to the chief officer of police and also, where the club is situated within a burgh, to the town council of such burgh and, where not within a burgh, to the parish council of the parish, and if no objections are taken, as herein-after provided, the sheriff shall, if satisfied that the application has been duly made as aforesaid and that the rules of the club are in conformity with the provisions of this Act, grant the application.

Grant and renewal of certificate of registration.

(2) It shall be competent for such chief officer of police, town council or parish council, on receiving such notice, and for no other person or persons, to lodge objections to the grant or renewal of the certificate, on any of the grounds of objection specified in this Act. Such objections shall be lodged by the objectors with the registrar within ten days of the receipt of the notice of application, and at the same time a copy of the objections shall be sent by them to the secretary of the club applying for the grant or renewal of a certificate.

(3) The sheriff shall, as soon as may be, hear parties upon the application and objections, and may order such inquiry as he thinks fit, and thereafter shall grant or refuse the application. Upon the grant of any such application the sheriff shall cause the entries required by this Act to be made in the register, and thereupon the registrar shall issue to the applicant, in, or as nearly as may be in, the form set out in the Tenth Schedule annexed hereto, a certificate of registration. Such certificate so issued shall, subject to the provisions of this Act, remain in force for a period of twelve months from the date of issue.

(4) The sheriff shall have power to award expenses against the unsuccessful party, where objection has been taken to the grant or renewal of a certificate, and such expenses payable by objectors may be charged against the county or burgh police assessment, burgh general assessment or special parish rate, as the case may be.

(5) Notwithstanding the provisions of this Act as to the duration of a certificate, where a renewal has been applied for, the current certificate shall remain in force pending the final decision of the

sheriff, but not exceeding three months, unless the sheriff shall in his discretion extend such time to a further period not exceeding other three months.

(6) A club failing to make application for renewal of a certificate, by the date at or previous to which such application must in terms of this Act be made, shall not be granted such renewal, unless the sheriff is satisfied that such failure was due to inadvertence.

(7) A club may make application for a certificate of registration at any time after the thirtieth day of November nineteen hundred and three and before the commencement of this Act, and no club which has made such application shall be deemed to be an unregistered club pending the final decision of the sheriff on such application, and any application so made shall for the purposes of this section be deemed to have been made on the first day of January nineteen hundred and four.

Club rules
qualifying for
registration.

80. In order that any club may be eligible to be registered, the rules of the club shall provide — •

- (a) that the business and affairs of the club shall be under the management of a committee or governing body, elected for not less than a year by the general body of members and subject in whole or in a specified proportion to annual re-election, and that no member of the committee or governing body and no manager or servant employed in the club shall have any personal interest in the sale of exciseable liquors therein or in the profits arising from such sale ;
- (b) that the committee or governing body shall hold periodical meetings ;
- (c) that the names and addresses of persons proposed as ordinary members of the club shall be displayed on a conspicuous place in the club premises for at least a week before their election, and that an interval of not less than two weeks shall elapse between nomination and election of ordinary members ;
- (d) that all members shall be elected by the whole body of members or by the committee or governing body, with or without specially added members ;
- (e) that there shall be a defined subscription payable by members in advance ;
- (f) that correct accounts and books shall be kept showing the financial affairs and intromissions of the club ;
- (g) that a visitor shall not be supplied with exciseable liquor in the club premises, unless on the invitation and in the company of a member, and that the member shall, upon the admission of such visitor to the club premises or immediately upon his being supplied with such liquor, enter his own name and the name and address of the visitor in a book which shall be kept for the purpose, and which shall show the date of each visit ;
- (h) that no exciseable liquors shall be sold or supplied for consumption outside the premises of the club, except as hereinafter provided ;

- (i) that no persons shall be allowed to become honorary or temporary members of the club or be relieved of the payment of the regular entrance fee or subscription, except those possessing certain qualifications defined in the rules, and subject to conditions and regulations prescribed therein ;
- (j) that no person under eighteen years of age shall be admitted a member of the club, unless the club is one primarily devoted to some athletic purpose, and, in the latter case, that no exciseable liquors shall be sold or supplied to any person under eighteen years of age :

Provided always that this section shall not apply to any lodge of Freemasons, duly constituted under a charter from the Grand Lodge of Scotland, and that sub-sections (c), (d) and (j) of this section shall not apply to a University Students' Union, which is recognised and certified as such to the registrar by the *Senatus Academicus* of a university.

81. The sheriff shall not consider any objection to the grant or renewal of a certificate, unless it is taken upon one or more of the following grounds :—

Competent grounds of objection to registration.

- (a) that the application made by the club, or its rules, or any of them, are in any respect specified in such objection not in conformity with the provisions of this Act ; or
- (b) that the club has ceased to exist or that the number of members is less than twenty-five ; or
- (c) that it is not conducted in good faith as a club, or that it is kept or habitually used for any unlawful purpose or mainly for the supply of exciseable liquor ; or
- (d) that there is frequent drunkenness on the club premises or that persons in a state of intoxication are frequently seen to leave the club premises or that the club is conducted in a disorderly manner ; or
- (e) that illegal sales of exciseable liquor have taken place on the club premises ; or
- (f) that persons who are not members are habitually admitted to the club, merely for the purpose of obtaining exciseable liquor ; or
- (g) that the club occupies premises, in respect of which, within twelve months next preceding the formation of the club, a certificate for the sale of exciseable liquors has been forfeited or the renewal of such a certificate has been refused, or in respect of which an order has been made that they shall not be used for the purposes of a club ; or
- (h) that the supply of exciseable liquor to the club is not under the control of the members or the committee appointed by the members ; or
- (i) that any of the rules of the club are habitually broken ; or
- (j) that the rules have been so changed as not to be in conformity with the provisions of the immediately preceding section of this Act.

Search warrant
to enter club.

82.—(1) If a justice of the peace of any county or magistrate of any burgh is satisfied, by information on oath, that there is reasonable ground for supposing that any registered club is so managed or carried on as to constitute a ground of objection to the renewal of its certificate, in terms of the immediately preceding section, or that an offence under this Act has been or is being committed in any registered club, or that any exciseable liquor is sold or supplied or kept for sale or supply on the premises of an unregistered club, he may grant a search warrant to any constable or constables named therein.

(2) A search warrant, granted under this section, shall authorise the constable or constables named therein to enter the club at any time, if need be by force, and to inspect the premises of the club, to take the names and addresses of any persons found therein and to seize any books and papers relating to the business of the club.

(3) In the event of any person or persons found in said premises refusing to give their respective names and addresses, when requested by any such constable, or giving false names or addresses, such person or persons so doing shall be liable severally, on summary conviction, to a fine not exceeding five pounds.

Penalty for supplying or keeping exciseable liquor in unregistered club.

83.—(1) If any exciseable liquor is supplied or sold to any member or other person on the premises of an unregistered club, every person supplying or selling such liquor, every person who shall pay for such liquor and every person authorising the supply or sale of such liquor shall be liable, on summary conviction, to imprisonment, with or without hard labour, for a term not exceeding one month, or to a fine not exceeding fifty pounds, or to both.

(2) If any exciseable liquor is kept for supply or sale on the premises of an unregistered club, the same, and the vessels containing the same, may be seized by the police under a warrant from a justice of the peace or magistrate, granted after examination on oath of a credible witness to the fact that such liquor is so kept, and every officer and member of the club shall be liable, on summary conviction, to a fine not exceeding for a first offence seven pounds, and for a second offence fifteen pounds, and for a third or subsequent offence thirty pounds, unless he proves to the satisfaction of the court that such liquor was so kept without his knowledge or against his consent, and on such conviction such liquor and the vessels containing the same shall be forfeited and sold, and the proceeds thereof paid into the funds of the county or into the police funds of the burgh.

Penalties for supplying exciseable liquor for consumption outside registered club.

84. If any exciseable liquor is sold or supplied in a registered club for consumption outside the premises of the club, except to a member on the premises and for his own consumption, or to a person holding an excise licence for the sale of such liquor, every person supplying or selling such liquor, every person who shall pay for such liquor and every person authorising the sale or supply of such liquor shall be liable severally, on summary conviction, to a fine not exceeding for a first offence seven pounds, for

a second offence fifteen pounds and for a third or subsequent offence thirty pounds, unless he proves to the satisfaction of the court that such liquor was so sold or supplied without his knowledge or against his consent, and, where it is proved that such liquor has been received, delivered or distributed within the premises of the club and taken outside the premises, it shall, failing proof to the contrary, be deemed to have been so taken for consumption outside the premises.

85.—(1) On summary complaint by or at the instance of any person or council competent to lodge objections to the grant or renewal of a certificate of registration, it shall be lawful for the sheriff and also, in a burgh, for any magistrate to pronounce a finding that, on grounds to be specified therein, a registered club is being so managed or carried on as to constitute a ground of objection to the renewal of its certificate, as hereinbefore provided.

Power to cancel
certificate of
registration.

(2) Where such finding has been pronounced, or where a conviction has taken place under the provisions of the immediately preceding section, a certified copy of the complaint and finding or of the complaint and conviction, as the case may be, shall within six days from the date of such finding or conviction be transmitted by the clerk of the court (not being the sheriff clerk) to the registrar, who shall forthwith make an entry of every such finding or conviction in the register of clubs, and lay the same before the sheriff, and it shall be lawful for the sheriff, if he think fit, and after such further inquiry as he may think necessary, having regard to the magnitude of the offence or to the grounds specified as aforesaid, to cancel the certificate of the club for the period for which it may still have to run, provided always that it shall be competent for such club to apply for the renewal of the certificate, at the date at which it would have been competent to do so, had the certificate not been cancelled.

(3) Where the sheriff has refused an application by any club for the renewal of a certificate, or has cancelled the certificate of a club in manner provided as aforesaid, he may, if he think fit, further pronounce an order that the premises occupied by such club shall not be used for the purposes of any club, which requires registration under this Act, for a specified period, which may extend to twelve months in case of a first order, or in case of a second or subsequent order to five years: Provided that any such order may, for good cause shown, be subsequently cancelled or varied by the sheriff.

86. Where a finding has been pronounced that a registered club is being so managed or carried on as to constitute a ground of objection to the renewal of its certificate, then, if the following grounds, or any of them, are specified in such finding, *videlicet*:—

Penalties for
offences by
officials of
registered club.

- (1) that it is not conducted in good faith as a club, or that it is kept or habitually used for any unlawful purpose or mainly for the supply of exciseable liquor; or
- (2) that there is frequent drunkenness on the club premises, or that persons in a state of intoxication are frequently seen to.

leave the club premises, or that the club is conducted in a disorderly manner; or

- (3) that persons, who are not members, are habitually admitted to the club merely for the purpose of obtaining exciseable liquor—

every person entered in the register of clubs as an official or a member of the committee of management or governing body of the club shall, unless he satisfies the court that the club was so managed or carried on without his knowledge or against his consent, be liable, on summary conviction, to a penalty not exceeding for a first offence seven pounds, for a second offence, whether in connection with the same or another club, fifteen pounds and for a third or subsequent offence as aforesaid thirty pounds.

Citation of registered club.
45 & 46 Vict.
c. 77.

87. Any citation of a registered club may be validly made in the registered name thereof in terms of the Citation Amendment (Scotland) Act, 1882, or by a copy of such citation being left by an officer of court at the registered address of the club.

Sheriff's decision final.

88.—(1) The jurisdiction of a sheriff, being a member of any club, shall not be excluded by such membership.

(2) The decision of the sheriff, in dealing with an application for an original certificate or for the renewal of a certificate or in cancelling a certificate, shall be final and not subject to review.

Penalty for making false application.

89. If the secretary of any club or any other person knowingly lodges with the registrar an application for registration which is false in any material particular, he shall be liable, on summary conviction before the sheriff, to imprisonment, with or without hard labour, for a term not exceeding three months, or to a fine not exceeding fifty pounds, or to both.

Definitions for this Part of Act.

90. In this Part of this Act the expression—

“Certificate” shall mean a certificate of registration:

“Registered club” shall mean a club holding a certificate of registration in force at the time:

“Secretary” shall include any officer of a club or other person performing the duties of a secretary.

PART VI.

LEGAL PROCEEDINGS.

Prosecution of offences and application of penalties and expenses.

91.—(1) Every person who shall commit any breach of certificate, or who shall in any other manner offend against this Act, shall be prosecuted, and all penalties, together with the expenses of prosecution and conviction, to be ascertained on conviction, shall be recovered, unless by this Act otherwise specially directed or authorised, before the sheriff or any two or more justices of the peace of a county or any magistrate of a royal, parliamentary or police burgh, having jurisdiction in the county or burgh, as the case may be, in which such offender shall reside or such offence shall have been committed, at the instance of the procurator fiscal, or other prosecutor ordinarily acting in such respective courts, or,

in the case of a justice of the peace or burgh police court, at the instance of such other party as shall be specially appointed to prosecute such class of offences by the justices of the peace of the county, in general quarter sessions assembled, or the town council of the burgh, as the case may be, and which appointment they are hereby specially authorised to make, and such justices of the peace in general quarter sessions or town council, as the case may be, may from time to time fix a reasonable sum in name of salary, or a reasonable rate of remuneration by fees for prosecutions and all other business under this Act, to be paid annually to such procurator fiscal or other party appointed to prosecute as aforesaid; and which salary, or the amount of the account of such fees, as the same shall be taxed on behalf of the county council or town council, as the case may be, together with all necessary and proper outlays attending such prosecutions and such business, shall form a proper charge against, and shall be paid annually out of, the fund of the county, out of which the expenses of criminal prosecutions are in use to be paid, and in royal or parliamentary burghs, having a separate licensing court, out of the police funds, or, where there are no police funds, out of the corporation funds of the burgh, as the case may be; and all penalties and expenses of prosecutions and convictions, incurred under and imposed by this Act, shall, when recovered, if adjudged by any sheriff, or justice or justices of the peace, or magistrate of any burgh (other than a royal or parliamentary burgh having a separate licensing court) be wholly paid into the county fund, and, if adjudged by any magistrate of any royal or parliamentary burgh having a separate licensing court, be wholly paid into the police funds, or, where there shall be no police funds, into the corporation funds of the burgh in which such penalties shall be imposed, respectively.

(2) Breaches of certificate and other offences in this section referred to may, unless by this Act otherwise specially directed or authorised, be prosecuted and tried as police offences before and by any magistrate or magistrates of any royal, parliamentary or police burgh, officiating in any court for the trial of police offences under the provisions of any local or general Police Act, in the same way and manner, in all respects, as may be provided for the trial of police offences by any such local or general Police Act in force in the county, district or burgh, where the offender shall reside, or the offence shall have been committed, and such magistrate or magistrates shall have power to impose the penalties and punishments and declare the forfeitures provided in that behalf by this Act.

(3) Every offence committed against this Act shall, except where inconsistent with the provisions and conditions of this Act, be tried and determined under the provisions of the Summary Jurisdiction Acts, and in the event of an offender being convicted, and failing to make payment of the penalty, which may have been imposed, immediately or within a specified period, he shall be liable to imprisonment in accordance with the provisions of the Summary Jurisdiction Acts, and it shall be lawful for the sheriff, justice or justices, magistrate or magistrates, before whom any prosecution is

brought, to proceed in absence of the accused, upon proof by the oath of an officer or constable that the accused has been duly summoned: Provided that, in any complaint brought under this Act, the description of any offence against this Act in the words of the Act, or of any certificate granted thereunder, shall be sufficient in law.

Citation and procedure on complaint for breach of certificate.

92. A person complained of for committing any breach of certificate shall be cited to appear before the court having jurisdiction at least six free days before the diet of appearance: Provided that, if such person cannot on search be found personally, he may be cited either at his place of abode or at his licensed premises. Any person so complained of may be legally convicted either on his own confession or by the testimony on oath of one or more credible witness or witnesses or upon other legal evidence.

Warrant to apprehend on complaint for trafficking.

93. In the case of any person complained of for trafficking in exciseable liquors in any place or premises without having obtained a certificate in that behalf, it shall be lawful for any sheriff, or any one justice or magistrate if he shall see fit, instead of granting warrant to summon such offender, to grant warrant to apprehend such offender to answer to the complaint and to be further dealt with as is provided by this Act.

Police to report all offences.

94. A chief officer of police shall, without undue delay, report to the procurator fiscal, or other party by this Act directed to prosecute offenders, all offences committed against this Act coming to his knowledge, and shall at all times use the means within his control for the detection and, when necessary, the apprehension of all offenders.

Power to police to enter eating houses, hotels, &c.

95. It shall be lawful for any chief constable, superintendent, lieutenant or inspector of police at any time to enter and inspect any eating house, temperance hotel, shop or other place, or any boat or vessel, where food or drink of any kind is sold to be consumed on the premises, or in which he shall have reason to believe that exciseable liquors of any kind are being unlawfully trafficked in; and it shall also be lawful for any constable, having an authority in writing from any justice of the peace or magistrate, or from any chief constable, superintendent, lieutenant or inspector of police, in any county, district or burgh, and which they are severally hereby authorised to grant, to enter and inspect any such eating houses, temperance hotels, shops or places, or any such boats or vessels, within such county, district or burgh respectively, at any time or times within eight days from the date of such writing, as may be specially mentioned in such writing; and any person who shall refuse to admit or shall not admit such officer of police or constable into any such eating house, temperance hotel, shop or other place, boat or vessel, or shall offer obstruction to his admission thereto, shall thereby be guilty of an offence, and may be apprehended on a warrant to that effect, granted by the sheriff or by any one justice of the peace or magistrate, and, on being convicted thereof, shall forfeit and pay a penalty not exceeding ten pounds: And it shall be lawful for any officer of

police or constable of any county, district or burgh, without any written authority, at any time to enter and inspect any licensed inn and hotel or public-house therein situated, and also, where he shall have reason to believe that a breach of certificate is being committed, at any time without written authority to enter and inspect the premises of any grocer or provision dealer trading in exciseable liquors; and any person who shall refuse to admit or shall not admit such officer of police or constable into such licensed inn and hotel, public-house or premises, or shall offer obstruction to his admission thereto, shall thereby be guilty of an offence, and, on being convicted thereof, shall forfeit and pay a penalty not exceeding ten pounds.

96. It shall be lawful for any justice of the peace of any county or district, or magistrate of any burgh, upon being satisfied by the personal examination on oath of a credible witness that there is reasonable ground for believing that exciseable liquors are trafficked in within any house or other premises within such county or burgh, as the case may be, not licensed for the sale thereof, or by any person not having a licence to sell exciseable liquors in or at such house or premises, or that such liquors are illegally kept for sale or for the purpose of being trafficked in at such house or premises, to grant warrant under his hand authorising any chief constable, superintendent, lieutenant, inspector or sergeant of police, with any constables, to enter such house or place at all times and to search for exciseable liquors, and, if the same be found in such house or place exceeding one gallon, to seize such exciseable liquors, together with the vessel or vessels in which the same are contained; and such warrant shall continue in force for one month from the date thereof, and shall be a sufficient authority to the chief constable, superintendent, lieutenant, inspector or sergeant of police therein named, and their assistants respectively, to enter into such house or place and seize all such liquors as aforesaid and the vessels containing the same, and to carry away and retain the same, until disposed of as herein-after provided: And the person occupying or using the premises where such liquors shall be found as aforesaid shall thereby be guilty of an offence, and, on being convicted thereof, shall forfeit and pay for the first offence a penalty not exceeding five pounds, and for the second and every subsequent offence a penalty not exceeding ten pounds: And all such exciseable liquors and the vessels containing the same so seized as aforesaid shall be forfeited and sold, without further warrant, and the proceeds of such sale shall be paid into the funds of the county or police funds of the burgh, and where there are no police funds into the corporation funds of the burgh, as the case may be, in which the premises, in which such liquors shall have been found, are situate.

Warrant to
seize exciseable
liquors found in
unlicensed
premises, and
penalties.

97. In order to warrant the conviction of any person for trafficking in any exciseable liquors in any place or premises without a certificate in that behalf, it shall be sufficient, in the absence of contrary evidence, to prove that some person, other than the owner or occupant of such place or premises, shall, at the time

Proof of
trafficking
exciseable
liquor in
shebeens.

charged, have been found in such place or premises drunk or drinking, or having had drink supplied to him therein, and that such place or premises is or are by repute kept as a shebeen, or, at the time charged, contained drinking utensils and fittings usually found in houses licensed for the sale of exciseable liquors.

Burden of proof
in case of
drunkenness on
licensed pre-
mises.

98. Where a licensed person is charged with permitting drunkenness on the premises, and it is proved that any person was drunk on his premises, it shall lie on the licensed person to prove that he and the persons employed by him took all reasonable steps for preventing drunkenness on the premises.

Convictions to
be transmitted
to clerk to
licensing court.

99. A certified extract of every conviction under this Act, for a breach of the terms and conditions of any certificate granted under the authority of this Act, shall, within six days after such conviction, be transmitted by the clerk of court to the clerk to the licensing court, within whose jurisdiction the party convicted shall reside, under a penalty of five pounds, to be recovered before the sheriff within six months next after the time when such transmission ought to have been made; and the clerk to the licensing court shall enter such convictions in the book or register required to be kept by him in terms of this Act, and, opposite to the name of the person therein entered to whom the same applies, the date of the conviction, specifying therein whether the same is the first, second or third or subsequent conviction; and the said book or register shall be produced by the clerk to the licensing court at every general meeting of such court held in pursuance of this Act.

Clerk to licens-
ing court to
certify convic-
tions to Inland
Revenue.

100. The clerk to the licensing court shall certify to the Commissioners of Inland Revenue, or to the collector of Inland Revenue in the particular district, the conviction of every person convicted of an offence in breach of the conditions and terms of his certificate, by which conviction such certificate has thereupon been adjudged null and void, which certificate of conviction shall be transmitted to the said Commissioners of Inland Revenue, or collector, within six days next after such conviction shall have taken place, if such clerk officiated as clerk of court at such conviction, and if such clerk did not so officiate, then within six days after such conviction shall have been transmitted to him, on pain of the said clerk to the licensing court forfeiting for every neglect so to do the sum of five pounds, to be recovered before the sheriff within six months next after the transmission by this Act ought to have been made; and such certificate of conviction shall be in the form contained in the Eleventh Schedule annexed hereto.

Appeal from
justices to
quarter ses-
sions.

101. If any person shall consider himself to be aggrieved by any judgment, whether of conviction or of absolvitor, given upon any complaint, presented under this Act, by any two or more justices of the peace, it shall be lawful to such person to appeal therefrom to the justices assembled at the next quarter sessions, held for the county in which the judgment so appealed against was given, which justices are hereby authorised and required to hear and finally adjudge such appeal: Provided always that no such appeal shall be

heard unless the appellant shall, within eight days next after such judgment, lodge his appeal with the clerk of such justices of the peace, and deposit with such clerk the amount of penalty and expenses awarded against him, and shall find caution with such clerk to abide such appeal and to pay such sums as shall be finally awarded, and shall give intimation of such appeal by serving a copy thereof upon the opposite party, within the said period of eight days.

102. It shall be competent to any person conceiving himself aggrieved by any warrant, sentence, order, decree, judgment or decision made or given by any sheriff, justice or justices of the peace or magistrate in any cause, prosecution or complaint raised under the authority of this Act, for any offence punishable by fine or by imprisonment, to bring the case by appeal before the high court of justiciary in the manner and by and under the rules, limitations, conditions and restrictions which shall from time to time be prescribed by the said high court of justiciary: Provided always that such appeal shall be competent only when founded on the ground of corruption or malice and oppression on the part of the sheriff, justice or justices of the peace or magistrate, as the case may be, or on such deviations in point of form from the statutory enactments as the court shall think have prevented substantial justice from having been done: Provided also that such appeals shall be heard and determined in open court, and that it shall be competent to the court to correct such deviation in point of form: Provided further that notice in writing of such appeal shall be given to the opposite party, and to the clerk of the court pronouncing such warrant, sentence, order, decree, judgment or decision, within eight days of the date thereof, and that no appeal shall be received or entertained unless the party appealing shall, along with his appeal, deposit with the clerk of the high court of justiciary a certificate under the hand of the sheriff clerk, town clerk or clerk of the peace or clerk to the magistrates or police court, as the case may be, that he has made consignment in the hands of such clerk of the whole sum and expenses, if any, decerned for by the warrant, sentence, order, decree, judgment or decision appealed from, and unless he shall have found sufficient security for the whole expenses which may be incurred and found due under the appeal: Provided always that nothing herein contained shall be held to exclude or interfere with the right of appeal to quarter sessions under the immediately preceding section, or with the right of appeal under the Summary Prosecutions Appeals (Scotland) Act, 1875, or the Burgh Police (Scotland) Act, 1892.

Appeal to high
court of
justiciary.

38 & 39 Vict.
c. 62.
55 & 56 Vict.
c. 55.

103. No warrant, sentence, order, decree, judgment or decision made or given by any quarter sessions, sheriff, justice or justices of the peace or magistrate in any cause, prosecution or complaint, or in any other matter under the authority of this Act, shall be subject to reduction, suspension or appeal, or any other form of review or stay of execution, on any ground or for any reason whatever, other than by this Act provided.

Sentences and
judgments not
otherwise sub-
ject to review

Limitation of
actions against
sheriffs,
officials, &c.

104. Every action or prosecution against any sheriff, justice or justices of the peace, magistrate, or against any sheriff clerk, clerk of the peace, town clerk, clerk to a licensing court or court of appeal or any procurator fiscal, superintendent or other officer of police or constable or other person, on account of anything done in execution of this Act, shall, save as otherwise provided, be commenced within two months after the cause of action or prosecution shall have arisen, and not afterwards.

Power to
admonish

105. In the trial of any offence under this Act the court may in its discretion, if such course appears to meet the justice of the case, dismiss any person found guilty with an admonition; and nothing in this Act contained shall be read as limiting any power to mitigate penalties contained in the Summary Jurisdiction Acts or any other Act, or as excluding the operation of the Fine or Imprisonment (Scotland and Ireland) Act, 1899.

62 & 63 Vict.
c. 11.

Disqualifica-
tions of clerks
to courts, &c.

106. No solicitor or other person being a clerk to a licensing court or a court of appeal, and no procurator fiscal or other person entrusted with the prosecution of offences against this Act, shall, by himself, his partner or clerk as solicitor or agent for any person, conduct or act in any application for or in respect of a certificate or any other proceedings whatsoever under this Act before such licensing court or court of appeal, and if any person contravenes this provision he shall be liable, on summary conviction before the sheriff, to a fine not exceeding one hundred pounds.

PART VII.

MISCELLANEOUS.

Interpretation
of terms.

107. In this Act the following words and expressions shall have the several meanings hereby assigned to them, unless there be something in the subject or context repugnant to such construction (that is to say):—

The word “certificate” shall mean any certificate for the sale of exciseable liquors granted in terms or under the provisions of this Act, provided that every certificate under the existing Acts, which is in force at the commencement of this Act, shall be deemed to have been so granted:

The expression “chief officer of police” shall have the same meaning as in the Police (Scotland) Act, 1890:

The word “constable” shall mean and include officers of court, chief constable, superintendent of police and every grade of constable or police officer or any person belonging to any constabulary force in any part of Scotland, as also any sheriff officer or justice of peace constable. The expressions “exciseable liquor” and “exciseable liquors” shall include spirits, wine, porter, ale, beer, cider, perry, mead, metheglin and sweets:

The expression “existing Acts” shall mean the Licensing (Scotland) Acts, 1828 to 1897:

53 & 54 Vict.
c. 67.

The word "hawking" shall mean and include trafficking in or about the streets, highways or other places, or in or from any boat or other vessel upon the water :

The expression "inn and hotel" shall in towns and the suburbs thereof mean a house containing at least four apartments set apart exclusively for the sleeping accommodation of travellers ; and in rural districts and populous places not exceeding one thousand inhabitants, according to the census for the time being last taken, a house containing at least two such apartments :

"Magistrate" for the purpose of trying offences means a magistrate of a royal, parliamentary or police burgh, and includes any judge officiating in any court for the trial of police offences under the provisions of any local or general Police Act :

"New certificate" means a certificate granted to any person in respect of any premises which are not certificated at the time of the application for such grant, but shall not apply to the rebuilding of certificated premises which have been destroyed by fire, tempest or other unforeseen and unavoidable calamity :

The expression "public-house" shall include a common inn, alehouse, victualling house or other premises in which any exciseable liquors are sold, by retail, to be drunk or consumed in the premises in which the same are sold :

The word "shebeen" shall mean and include every house, shop, room, premises or place in which exciseable liquors are trafficked in, by retail, without a certificate and excise licence in that behalf :

The expression "sweets" shall include sweets or made wines as defined in the Revenue Act, 1889 :

The expression "trafficking" shall mean and include bartering, selling, dealing in, trading in, exposing or offering for sale by retail.

52 & 53 Vict.
c. 42.

108. This Act may be cited as the Licensing (Scotland) Act, 1903, and shall apply to Scotland only.

Short title and
application.

109. Except as otherwise provided, this Act shall commence on the first day of January one thousand nine hundred and four. Provided that the Secretary for Scotland may, by order or orders under his hand at any time after the passing of this Act, and before the date of the first general half-yearly meeting of a licensing court constituted by this Act, prescribe the statutory duties to be performed before such date by members of and clerks to such courts, and otherwise provide as may be necessary for bringing this Act into full operation, and, save as provided in any such order, such members and clerks shall not enter on their ordinary duties until such date, and any such order shall have effect as if enacted in this Act, and shall be laid as soon as may be before Parliament. Subject to anything contained in any such order, and notwithstanding anything in this Act, it shall be lawful for justices and magistrates and their clerks respectively until such date to exercise any powers vested in them under the existing

Commence-
ment of Act.

Acts, in the same manner, and subject to the same conditions, as if this Act had not passed.

Repeal.

110. The enactments mentioned in the Twelfth Schedule annexed hereto are hereby repealed to the extent mentioned in the third column of that schedule.

SCHEDULES.

Section 3 (3).

FIRST SCHEDULE.

NUMBER AND CONSTITUTION OF LICENSING COURT IN COUNTIES
OR DISTRICTS OF COUNTIES ACCORDING TO THE POPULATION
OF EACH COUNTY OR DISTRICT.

CLASS I.—Population under 25,000.

LICENSING COURT.

County Councillors, 4; Justices, 4; Total, 8.

CLASS II.—From 25,000 to 50,000.

LICENSING COURT.

County Councillors, 6; Justices, 6; Total, 12.

CLASS III.—From 50,000 to 100,000.

LICENSING COURT.

County Councillors, 7; Justices, 7; Total, 14.

CLASS IV.—100,000 or over.

LICENSING COURT.

County Councillors, 9; Justices, 9; Total, 18.

SECOND SCHEDULE.

Sections 4 (2)
(c), 8 (6) and
10 (2).

PART I.

CONSTITUTION OF APPEAL COURT IN EACH COUNTY FOR ALL THE
BURGHS IN THE COUNTY OF OR EXCEEDING 7,000 AND UNDER
20,000 POPULATION.

County.	Burgh.	Present Popula- tion of Burgh.	Court to consist of			
			Magistrates.		Justices.	Total Number of Court.
			From each Burgh.	Total of Magis- trates.		
Aberdeen	Peterhead	11,794	3	6	6	12
	Fraserburgh	9,105	3			
Argyll	Campbeltown	8,286	3	6	6	12
	Dunoon	7,000	3			
Ayr	Irvine	9,618	3	6	6	12
	Saltcoats	8,120	3			
Banff	Banff and Macduff	7,161	2	4	4	8
	Buckie	7,483	2			
Bute	Rothsay	9,378	3	3	3	6
Caithness	Wick	8,199	3	3	3	6
Clackmannan	Alloa	11,421	3	3	3	6
Dumbarton	Kirkintilloch	10,502	3	6	6	12
	Helensburgh	8,554	3			
Dumfries	Dumfries	13,092	3	3	3	6
Edinburgh	Musselburgh	11,711	3	6	6	12
	Dalkeith	7,000	3			
Elgin	Elgin	8,407	3	3	3	6
	Buckhaven	8,421	2			
Fife	St. Andrews	7,621	2	6	6	12
	Cowdenbeath	7,467	2			
Forfar	Montrose	12,427	2	8	8	16
	Forfar	11,397	2			
	Broughty Ferry	10,484	2	8	8	16
	Brechin	8,941	2			
Lanark	Lower Ward:			6	6	12
	Rutherglen	16,185	3			
Linlithgow	Kinning Park	13,852	3	6	6	12
	Bo'ness	9,306	3			
Renfrew	Bathgate	7,000	3	6	6	12
	Port Glasgow	16,857	2			
	Pollokshaws	11,183	1	6	6	12
	Johnstone	10,503	1			
	Barrhead	9,855	1	3	3	6
	Renfrew	9,296	1			
Roxburgh	Hawick	7,303	3	3	3	6
Selkirk	Galashiels	13,615	3	3	3	6
Stirling	Stirling	13,403	2	4	4	8
	Grangemouth	8,386	1			
	Kilsyth	7,292	1			

PART II.

Burgh.	Population.
Clydebank - - - - -	- 20,000
Dumbarton - - - - -	- 20,000
Haddington - - - - -	- 4,000
Inverurie - - - - -	- 4,000

Section 4 (3).

THIRD SCHEDULE.

NUMBER AND CONSTITUTION OF APPEAL COURT FOR EACH COUNTY
WHETHER DIVIDED INTO DISTRICTS FOR THE PURPOSES OF
THIS ACT OR NOT, ACCORDING TO THE POPULATION OF THE
COUNTY OR THE MOST POPULOUS DISTRICT THEREIN.

CLASS I.—Population under 25,000.

APPEAL COURT.

County Councillors, 7 ; Justices, 7 ; Total, 14.

CLASS II.—From 25,000 to 50,000.

APPEAL COURT.

County Councillors, 9 ; Justices, 9 ; Total, 18.

CLASS III.—From 50,000 to 100,000.

APPEAL COURT.

County Councillors, 10 ; Justices, 10 ; Total, 20.

CLASS IV.—100,000 or over.

APPEAL COURT.

County Councillors, 12 ; Justices, 12 ; Total, 24.

FOURTH SCHEDULE.

No. 1.

Section 14.

Unto the honourable the licensing court for

The application of [*state full name, designation and present place
of abode of applicant*]

Humbly sheweth,

That the applicant is desirous to obtain a certificate for licence for [an
inn and hotel, or public-house, or a dealer in groceries and provisions, as

the case may be] at [*place or street, and number*] in the parish [*or burgh*] of _____, and county of _____, for the ensuing year [*or half year, as the case may be*], in terms of this Act, and refers to the answers which are truly made to the subjoined queries :

State whether it is a renewal of a certificate at present in applicant's name, or in that of another party, or renewal of a transferred certificate, or a certificate for a new house, that applicant desires - - -

Whether applicant has attained twenty-one years of age - - -

Whether bred to the trade; or if not, to what other trade or business -

Whether applicant carries on or intends to carry on or follow any other trade or occupation - - -

Whether applicant holds a licence at present; and if so, state where the premises are situated, and how long he has held the same - -

Whether applicant has any interest in any other business in premises at present licensed, or for which a certificate is sought; and if so, where those premises are severally situated

State the actual rent of premises and the proprietor's or factor's name and designation - - -

Signature of applicant

Date

No. 2.

REPORT BY MEMBER OF LICENSING COURT.

I, _____, a member of the licensing court for _____, hereby report that I personally examined the premises described in the foregoing application, and that the same are of suitable construction and accommodation for the purpose applied for, reserving to the licensing court to determine whether it be meet and convenient to grant the certificate applied for.

(Signature of Member.)

CERTIFICATE OF CHARACTER AND QUALIFICATION.

I, _____, a member of the licensing court for _____, certify, after careful inquiry, that _____, designed in the foregoing application, is [*here state result of inquiry touching applicant's character and qualification*].

(Signature of Member.)

Sections 16, 17
and 30.

FIFTH SCHEDULE.

FORM OF REGISTER OF APPLICATIONS.

Nos.	Names and (Designations of Applicants.	I. For Inns and Hotels, and where situated.	II. For Public- houses, and where situated.	III. For Dealers in Spirits, Groceries, and Provisions.	Persons recom- mending Applicants.	How disposed of.	Convic- tions, and Dates thereof.
1. •							
2.							

DELIVERANCE.

(At the end of each day's register.)

At May

Numbers 2, 3, 6 (*as the case may be*) granted.

Numbers 1, 4, 5 refused.

Numbers 7, 8 continued (*or otherwise* disposed of)

LIST OF APPLICANTS for CERTIFICATES for the Sale of Exciseable
Liquors for the County [*or* of the County] of
or Burgh of , for new Certificates, by new Tenants
or Occupants, and for Renewal of transferred Certificates.

Name, Designation, and Residence of Applicant.	Number of Street of Burgh (or Place and Parish of County) of Premises.	Class of Certificate applied for.	Name and Address of Landlord or Factor of Premises.
		<i>For new Certificate.</i>	
		<i>By new Tenants or Occupants.</i>	
		<i>For Renewal of Transferred Certificate.</i>	

SIXTH SCHEDULE.

No. 1.

Sections 16, 34,
35, 37, 44 and
45. •

FORM OF CERTIFICATE FOR INNS AND HOTELS.

At a general meeting for granting and renewing certificates for the sale of exciseable liquors held by the licensing court for the county [*or district or burgh, as the case may be*], of _____, holden at _____, on the _____ day of _____, in the year one thousand nine hundred and _____, the licensing court acting for said county [*or district or burgh*] assembled at the said meeting did authorise and empower *A.L.*, now dwelling at _____, to keep an inn and hotel at _____, in the parish of _____ and county aforesaid [*or district or burgh aforesaid*], for the sale in the said house, but not elsewhere, of victuals, and of spirits, wine, porter, ale, beer, cyder, perry or other exciseable liquors [*or of victuals, and of porter, ale, beer, cyder or perry*], [*or of victuals and of wine, porter, ale, beer, cyder or perry*]: Provided the said *A.L.* shall be licensed and empowered to sell such liquors under the authority and permission of any excise licence to him or her in that behalf granted, on the terms and conditions following (that is to say): that the said *A.L.* do not fraudulently adulterate the bread or other victuals or liquor sold by him, or sell the same knowing them to have been fraudulently adulterated; and do not sell any groceries or other uncooked provisions in the said house or premises, to be consumed elsewhere; and do not knowingly permit any breach of the peace, drunkenness or riotous or disorderly conduct, within the said house or premises, and do not himself be in a state of intoxication on the premises; and do not knowingly permit or suffer men or women of notoriously bad fame or girls or boys to assemble and meet therein; and do not supply exciseable liquors to girls or boys apparently under fourteen years of age or to persons who are in a state of intoxication; and do not permit or suffer any unlawful games therein; and do not keep open house, or permit or suffer any drinking on any part of the premises belonging thereto, or sell or give out therefrom any liquors before eight of the clock in the morning of any day or after such hour at night of any day not earlier than ten and not later than eleven as the licensing court may direct, with the exception of refreshment to travellers or to persons requiring to lodge in the said house or premises; and do not open his house for the sale of any exciseable liquors, or permit or suffer any drinking therein or on the premises belonging thereto, or sell or give out the same, on Sunday, except for the accommodation of lodgers and travellers; and do maintain good order and rule within his house and premises; and, lastly, do not transgress or commit any breach of the conditions of any permission to sell on a public or special occasion within his own house or elsewhere. This certificate to continue in force, upon the terms and conditions aforesaid, from the _____ day of _____ one thousand nine hundred and _____ and until the twenty-eighth day of May one thousand nine hundred and _____, and no longer.

The above certificate is made out according to the deliverance in the book or register appointed to be kept in terms of the Act of Parliament.

C.D., Clerk.

No. 2.

FORM OF CERTIFICATE FOR PUBLIC-HOUSES.

At a general meeting for granting and renewing certificates for the sale of exciseable liquors held by the licensing court for the county [*or district or burgh, as the case may be*] of _____, holden at _____, on the _____ day of _____, in the

or perry]: Provided the said *A.L.* shall be licensed and empowered to sell such liquors under the authority and permission of any excise licence to him in that behalf granted, on the terms and conditions following (that is to say): that the said *A.L.* do not fraudulently adulterate the liquors sold by him, or sell the same knowing them to have been fraudulently adulterated; and do not knowingly permit any breach of the peace, drunkenness or riotous or disorderly conduct within the said premises, and do not himself be in a state of intoxication on the premises; and do not sell or supply exciseable liquors to persons who are in a state of intoxication or to girls or boys apparently under fourteen years of age, and do not traffic in or give any spirits, wine or other exciseable liquors [*or wine, porter, ale, beer, cyder and perry*], [*or porter, ale, beer, cyder and perry*], to be drunk or consumed on the said premises, and do not receive or take in as the price or for the supply of exciseable liquors, any wearing apparel, goods or chattels; and do not traffic in or give out therefrom any liquors before eight of the clock in the morning of any day, or after such hour at night of any day, nor earlier than ten and not later than eleven, as the licensing court may direct; and do not open his premises for business, or for the sale of any liquors, or any goods or commodities whatsoever, or sell or give out the same, on Sunday; and, lastly, do maintain good order and rule within his premises. This certificate to continue in force, upon the terms and conditions aforesaid from the day of _____, one thousand nine hundred and _____ and until the twenty-eighth day of May one thousand nine hundred and _____ and no longer.

The above certificate is made out according to the deliverance in the book or register appointed to be kept in terms of the Act of Parliament.

C.D., Clerk.

SEVENTH SCHEDULE.

Section 27.

THE following FEES to be payable to CLERKS OF THE PEACE, SHERIFF
CLERKS and TOWN CLERKS, acting under this Act:—

	£	s.	d.
Each printed copy of form of application for certificate -	0	0	6
Lodging application -	0	2	6
Lodging objection -	0	2	6
Inspection of register, or applications, for each hour or part of an hour -	0	1	0
Warrant on complaint -	0	2	0
Each witness examined in trials -	0	1	0
Conviction -	0	2	6
Deciding objections -	0	1	0
Lodging appeal and finding caution -	0	3	0
Deciding appeal -	0	2	6
Extracts or certified copies of any proceedings, warrants or conviction, per sheet, written or printed, of 150 words -	0	1	0

EIGHTH SCHEDULE.

No. 1.

APPLICATION FOR CONFIRMATION OF NEW CERTIFICATE.

Section 28.

To the court of appeal from the licensing court for
I, *A.B.*, hereby apply for confirmation of the grant made to me of the
certificate herewith produced by the licensing court for
[give date].

(Signed) [A.B.]

or
[C.D., law agent of A.B.]

No. 2.

CONFIRMATION OF NEW CERTIFICATE.

This certificate was confirmed by the court of appeal from the licensing court for _____, at a meeting holden on the _____ day of _____ in the year _____.

The above confirmation is made out according to the deliverance in the book or register appointed to be kept in terms of the Act of Parliament.

G.H., Clerk.

Section 32.

NINTH SCHEDULE.

TRANSFER OF CERTIFICATE.

[*Place and date.*] Whereas *A.L.*, designed in the within certificate for keeping a _____, at _____ for the retail of exciseable liquors under excise licences, has _____ : And whereas *M.N.* [*here state the qualification for grant of a transfer, as the case may be*] is desirous to have the said certificate transferred to him, in order that he may carry on the said business there : And whereas it is considered by the licensing court [or (*as the case may be*) by us, two of the members of the licensing court] for _____ that he is a person fit to be intrusted to carry on the said business there, we hereby transfer the said certificate to him accordingly, subject to all the conditions therein specified, in the same manner as if he were the person to whom it was originally granted ; this certificate to be of force only until _____ and to be duly presented for entry at the _____ Office of Inland Revenue, within _____ days from this date, otherwise the same to be null and void to all intents and purposes.

[*Signatures of clerk to the licensing court or of two members of the licensing court, as the case may be.*]

Section 78 (1).

TENTH SCHEDULE.

FORM OF CERTIFICATE TO ACCOMPANY APPLICATION BY CLUB FOR REGISTRATION OR RENEWAL.

We, _____ justices of the peace for the county of _____ [or *magistrates of the burgh of* _____] and I, _____ owner of the premises occupied [or *to be occupied*] by the club hereinafter mentioned hereby certify that to the best of our knowledge and belief the club designated in the accompanying application is to be [or, in the case of an application by an existing club, *has been and is to be*] conducted as a *bonâ fide* club, and not mainly for the supply of exciseable liquor.

[Signature, date and address of each person certifying to be here inserted.]

FORM OF CERTIFICATE OF REGISTRATION OF CLUBS
TO BE GRANTED UNDER THIS ACT.*Certificate of Registration.*

* Fill in registered postal address of all premises used by the club.

I, _____, Sheriff Clerk of _____, Registrar of Clubs, hereby certify that the _____ club of* _____ is registered under the Licensing (Scotland) Act, 1903. This certificate remains in force till _____

the ° day of , 19 ; application for its renewal must be made not later than the day of , 19 .

Given under my hand this day of 19 .

Registrar of Clubs.

ELEVENTH SCHEDULE.

Section 100.

NOTICE OF CONVICTION FOR BREACH OF CERTIFICATE, FOR WHICH THE CERTIFICATE HAS BEEN FORFEITED.

Unto the Honourable the Commissioners of His Majesty's Inland Revenue, or to the collector of Inland Revenue of district in Scotland.

This is to certify, that *C.D.* of in the County [*or* Burgh] of was, on the day of , in the year one thousand nine hundred and at convicted before *G.H.* Esquire and *J.K.* Esquire, two of His Majesty's justices of the peace for [*or, as the case may be*], for a breach of the conditions and terms of the certificate to him or her in that behalf granted; and the certificate of the said *C.D.* to keep an inn and hotel [*or, as the case may be*] has by the aforesaid justices been adjudged null and void. Given under my hand, this day of in the year one thousand nine hundred and .

S.K., Clerk to the Licensing Court for .

TWELFTH SCHEDULE.

Sections 70 (4), 110.

PART I.

Session and Chapter.	Short Title.	Extent of Repeal.
9 Geo. 4. c. 58.	The Licensing (Scotland) Act, 1828.	Whole Act.
16 & 17 Vict. c. 67.	The Licensing (Scotland) Act, 1853.	Whole Act.
25 & 26 Vict. c. 35.	The Public Houses Acts Amendment (Scotland) Act, 1862.	Whole Act.
39 & 40 Vict. c. 26.	The Publicans' Certificates (Scotland) Act, 1876.	Whole Act.
40 & 41 Vict. c. 3.	The Publicans' Certificates (Scotland) Act (1876) Amendment Act, 1877.	Whole Act.
43 & 44 Vict. c. 20.	Inland Revenue Act, 1880.	Section forty-four, so far as applicable to Scotland.
44 & 45 Vict. c. 58.	The Army Act .	Section one hundred and seventy-four, so far as applicable to Scotland.
50 & 51 Vict. c. 38.	The Public Houses Hours of Closing (Scotland) Act, 1887.	Whole Act.



Session and Chapter.	Short Title.	Extent of Repeal.
55 & 56 Vict. c. 55.	Burgh Police (Scotland) Act, 1892.	Section five hundred and fifteen.
60 & 61 Vict. c. 50.	Licensing Amendment (Scotland) Act, 1897.	Whole Act.
63 & 64 Vict. c. 28.	The Inebriates Amendment (Scotland) Act, 1900.	Section two.
1 Edw. 7. c. 27.	The Intoxicating Liquors (Sale to Children) Act, 1901.	Whole Act, so far as applicable to Scotland.

PART II.

Session and Chapter.	Short Title.	Extent of Repeal.
18 & 19 Vict. c. cclxxiii.	Glasgow Police Act, 1866.	Sub-section thirty-one of section one hundred and forty-nine. Section two hundred and thirty-seven, the words "be intoxicated while on duty, or if," and the word "he," where first occurring.
25 & 26 Vict. c. cciii.	Aberdeen Police and Waterworks Act, 1862.	Section one hundred and forty-six, the words "every person who is drunk in any street or public place, and is guilty of any riotous or indecent behaviour therein, and"
40 & 41 Vict. c. cxciii.	Greenock Police Act, 1877.	Section four hundred and sixteen, the word "drunk."
42 & 43 Vict. c. cxxxii.	Edinburgh Municipal and Police Act, 1879.	Sub-section six of section two hundred and forty-seven as amended. Sub-section four of section two hundred and forty-eight.
55 & 56 Vict. c. ccxxxv.	Dundee Extension and Improvement Act, 1892.	Section eighty-five.
55 & 56 Vict. c. 55.	Burgh Police (Scotland) Act, 1892.	Sub-section eleven of section three hundred and eighty. Sub-section twenty-four of section three hundred and eighty-one.